

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 07/22/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16**

Notice is hereby given that the Hon. Benjamin T. Reyes II will be teaching on assignment at the Bernie Witkin Judicial College During the week of July 20, 2026. The Hon. Barry Goode (Ret.), sitting on assignment, will be presiding over the Law & Motion Calendar on July 22, 2026.

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C23-00009

CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference trails the hearings for Lines 4-6. Counsel are ordered to appear remotely or in-person for the CMC, unless the tentative rulings are unopposed. If the tentative rulings are unopposed, this CMC is vacated and continued to October 15, 2026 at 8:30 a.m.

2. 9:00 AM CASE NUMBER: C25-03259

CASE NAME: BRANDON WOODARD VS. RYAN KIM

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference trails the hearings for Line 19. Counsel are ordered to appear remotely or in-person for the CMC, unless the tentative ruling is unopposed. If the tentative ruling is unopposed, then no appearance is required and this CMC is continued to April 8, 2027 at 8:30 a.m.

3. 9:00 AM CASE NUMBER: C26-00089

CASE NAME: AARON GUION VS. WATERTON RESIDENTIAL, L.L.C.

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference trails the hearings for Line 20. Counsel are ordered to appear remotely or in-person for the CMC, unless the tentative ruling is unopposed. If the tentative ruling is unopposed, then no appearance is required and this CMC is continued to November 11, 2026 at 8:30 a.m.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-00009

CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.

**HEARING ON SUMMARY MOTION SUMMARY JUDGMENT/MOTION FOR SUMMARY
ADJUDICATION (SEE 4/29/26 HEARING)**

FILED BY: SKINSPIRIT ESSENTIAL, LLC,

TENTATIVE RULING:

Defendant Skinspirit Essential, LLC. ("Defendant"), brings the instant motion for summary judgment, or in the alternative, summary adjudication ("MSJ"), against the complaint of plaintiff Michelle Daly ("Plaintiff"). This MSJ was originally scheduled to be heard on April 15, 2026. However, Plaintiff filed an opposition that was not substantively on the merits but rather asked the Court for a continuance under Code of Civil Procedure section 473c, subdivision (h), in order to obtain certain discovery that was the subject of future motions to compel, such that a meaningful opposition could be filed. (Mark D. Rosenberg Decl. ISO Opposition to MSJ ("Rosenberg Decl."), ¶¶ 4-29.)

This Motion to Compel Further Responses is set for June 17, 2026, which is after the April 2026 MSJ hearing dates and after the opposition deadlines. As a practical matter, the Court cannot resolve the discovery dispute before Plaintiff must oppose the MSJs under the current schedule, which further supports a continuance under CCP § 437c(h) so discovery can be completed and incorporated into a meaningful opposition.
(Rosenberg Decl., ¶ 19.)

As a result, the Court took the MSJ hearing off calendar.

The calendaring of events in this case is a confusing spider web of events. The bottom line, however, is that we need to ascertain whether plaintiff's counsel is or is not going to continue to represent plaintiff, and whether (and how) plaintiff is going to continue to litigate the case, before we can fairly ask her or any of the other parties to proceed to full consideration of any of the substantive matters now before the Court.

There are three summary judgment motions on today's calendar, two of which were only belatedly added onto this calendar. Plaintiff, however, has sought to continue those motions because she asserts she needs some still-pending discovery in order to respond to them. Her own motion to compel the discovery she says she needs for that purpose is calendared for June 17.

There is also a motion to file under seal. Two related motions to file under seal, however, have been noticed for April 29, coinciding with a CMC set for that date. Even absent other concerns, the summary judgments should await ruling on the motions to seal.
(4/15/2026 Minute Order.)

At this time, the motions to seal have been resolved on April 29, 2026, the motion to withdraw as counsel has been resolved on June 17, 2026, and the motions to compel have been resolved as the proposed order granting the motions was executed by this Court on July 10, 2026.

On July 13, 2026, Plaintiff filed a declaration stating that the discovery that this Court compelled has not yet been obtained and asking that the Court continue the instant MSJ hearing of July 22, 2026, "under Code of Civil Procedure section 437c(h) until the court-ordered discovery is produced and reviewed. . ." (Declaration of Michelle Daly, ¶¶ 5, 7.) As the Court's initial continuance would mean nothing without the compelled discovery being produced and reviewed, the Court will further continue the MSJ hearing.

The Court hereby continues the MSJ hearing for this matter until **September 16, 2026**, at 9:00 a.m., in Department 16, with the supplemental opposition due **August 26, 2026**, and the supplemental reply due **September 4, 2026**. This should be enough time for the Defendants to produce the discovery that has been compelled and for it to be reviewed by Plaintiff and her expert. If these dates are not suitable for the parties, they may contest this tentative and appear to further discuss continuance options.

5. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
HEARING ON SUMMARY MOTION SUMMARY JUDGMENT/MOTION FOR SUMMARY
ADJUDICATION (SEE 4/29/26 HEARING)
FILED BY: VISTNES, M.D., MICHAEL DEAN
TENTATIVE RULING:

Defendants Michael Dean Vistnes M.D. and Dean Vistnes, MD INC. ("Defendants"), bring the instant motion for summary judgment, or in the alternative, summary adjudication ("MSJ"), against the complaint of plaintiff Michelle Daly ("Plaintiff"). This MSJ was originally scheduled to be heard on April 15, 2026. However, Plaintiff filed an opposition that was not substantively on the merits but rather asked the Court for a continuance under Code of Civil Procedure section 473c, subdivision (h), in order to obtain certain discovery that was the subject of future motions to compel, such that a meaningful opposition could be filed. (Mark D. Rosenberg Decl. ISO Opposition to MSJ ("Rosenberg Decl."), ¶¶ 4-29.)

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counsel has been resolved on June 17, 2026, and the motions to compel have been resolved as the proposed order granting the motions was executed by this Court on July 10, 2026.

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6. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
HEARING ON SUMMARY MOTION
FILED BY: WHEATON, R.N., JEFF
TENTATIVE RULING:

Defendant Jeff Wheaton, RN (“Defendant”), brings the instant motion for summary judgment, or in the alternative, summary adjudication (“MSJ”), against the complaint of plaintiff Michelle Daly (“Plaintiff”). This MSJ was originally scheduled to be heard on April 15, 2026. However, Plaintiff filed an opposition that was not substantively on the merits but rather asked the Court for a continuance under Code of Civil Procedure section 473c, subdivision (h), in order to obtain certain discovery that was the subject of future motions to compel, such that a meaningful opposition could be filed. (Mark D. Rosenberg Decl. ISO Opposition to MSJ (“Rosenberg Decl.”), ¶¶ 4-29.)

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to represent plaintiff, and whether (and how) plaintiff is going to continue to litigate the case, before we can fairly ask her or any of the other parties to proceed to full consideration of any of the substantive matters now before the Court.

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7. 9:00 AM CASE NUMBER: C23-02216
CASE NAME: GEROSKA GAY VS. PREMIUM RETAIL SERVICES, INC.
***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**
FILED BY: GEROSKA GAY

TENTATIVE RULING:

Summary

Plaintiffs Geroksa Gay, Patricia Young, Philip Jackson and Vanessa Martinez, ("Plaintiffs") individually and on behalf of all others similarly situated, seek approval of a class and representative action settlement agreement with Defendants Premium retail Services, LLC, et. al., Premium Retail Services, Inc., and Ezat Rahimi, et. al. (Premium). This motion is unopposed and is **granted** as set forth herein.

No appearance is required at the hearing on July 22, 2026.

Background and Settlement Terms

This settlement arises from three related actions filed by Plaintiffs against Premium, alleging that Premium unlawfully failed to reimburse business expenses and pay all wages due to non-exempt, hourly employees in the "Representative" job classification in California, including overtime, vacation, sick pay, commissions, premium wages for missed meal and rest breaks, and waiting time penalties, and issued inaccurate wage statements in violation of the California Labor Code. The cases were initially filed separately between June and September 2023 in Contra Costa County Superior Court (Case No. C23-1599), the Southern District of California (Case No. 3:23-CV-01515), and Santa Clara County Superior Court, and were subsequently consolidated through stipulation of the Parties. See generally Piazza Decl., Exhibit A (Settlement Agreement).

Prior to commencing the actions under the Private Attorneys General Act ("PAGA"), Plaintiffs provided written notice to the Labor and Workforce Development Agency ("LWDA") and to Defendant of the specific Labor Code provisions alleged to have been violated; the LWDA did not provide notice of its intent to investigate. Plaintiffs therefore became authorized to commence civil actions to recover civil penalties under PAGA on behalf of the State of California and Aggrieved Employees. Piazza Decl. ¶ 19. The Settlement Class is defined as all non-exempt, hourly employees who fall under Defendant's Representative job classification in California from June 13, 2022, through September 26, 2024, comprising approximately 4,412 employees. Agreement ¶ 1.1.

Following extensive informal discovery, including Defendant's production of voluminous electronic and hard-copy time data, pay data, GPS coordinates, class size and workweek information, and hourly rates, the Parties engaged independent economic experts and performed detailed damages analyses over several months. Piazza Decl. ¶ 23. On September 26, 2024, the Parties participated in a full-day mediation with respected wage and hour mediator Michael E. Dickstein, Esq., followed by protracted arm's-length negotiations, culminating in the execution of a long-form Settlement Agreement on April 28, 2025.

The Court preliminarily approved the Settlement on November 19, 2025, following a modification regarding unclaimed funds, which shall be transmitted to the California Controller's Unclaimed Property Fund pursuant to Code of Civil Procedure section 384(b). Piazza Decl. ¶¶ 29, 76. The Settlement Administrator, Apex Class Action, mailed the Class Notice to 4,412 Settlement Class Members on December 18, 2025, advising them of their right to object, request exclusion, and appear at the Final Approval Hearing. Nava Decl. ¶¶ 4, 9, Exhibit A. Apex performed skip-tracing for 434 returned notices, successfully locating updated addresses for 267 individuals, resulting in successful delivery to approximately 96.21% of the Class. Nava Decl. ¶ 10. As of the Response Deadline, the Settlement Administrator received zero objections and zero requests for exclusion from the Settlement. Nava Decl. ¶¶ 11–12.

The Settlement provides for a non-reversionary Gross Settlement Amount of \$3,000,000.00, to be

funded by Defendant within twenty calendar days after the Effective Date. Agreement ¶¶ 1.22, 4.3. From the Gross Settlement Amount, the Settlement deducts: (1) attorneys' fees of \$1,000,000.00 (one-third of the Gross Settlement Amount); (2) litigation expenses not to exceed \$65,000.00 (currently totaling \$61,693.53); (3) Class Representative Service Payments of \$10,000.00 to each Named Plaintiff (\$40,000.00 total); (4) Settlement Administration Costs of \$34,990.00 to Apex Class Action; and (5) PAGA Penalties of \$150,000.00. Agreement ¶ 3.2.2; Piazza Decl. ¶ 76, Exhibit 1; Bibiyan Decl. ¶ 16, Exhibit 3; Kim Decl. ¶ 24, Exhibit 4. Defendant has agreed to pay the employer's share of payroll taxes separately. Agreement ¶ 1.22.

The Net Settlement Amount available for distribution to Participating Class Members totals approximately \$1,747,500.00. Participating Class Members shall receive pro rata payments based on the number of workweeks worked during the Class Period, with each workweek equal to one settlement share. Agreement ¶¶ 1.42, 3.2.4. Of the \$150,000.00 allocated for PAGA Penalties, seventy-five percent (\$112,500.00) shall be paid to the LWDA, and twenty-five percent (\$37,500.00) shall be distributed to Aggrieved Employees (those Class Members who had at least one PAGA Pay Period) as pro rata shares based on the number of PAGA Pay Periods worked during the PAGA Period. Agreement ¶¶ 1.36, 3.2.7.

Upon the Effective Date, Named Plaintiffs shall release all claims outlined in Paragraph 6.1 of the Settlement Agreement; Participating Class Members who are not Aggrieved Employees shall release claims per Paragraph 6.2; and Participating Class Members who are also Aggrieved Employees shall release claims per Paragraph 6.3. Agreement ¶ 6. The Settlement has been well-received by the Class, with no objections or exclusions received, and represents a fair, reasonable, and adequate resolution of the claims considering the risks of litigation and the substantial relief obtained for the Class.

Analysis

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First,

public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, \$1,000,000.00, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

Counsel prepared a lodestar fee estimate, estimating \$705,269.50, based on 1,007.6 hours, at rates between \$485-935 per hour. This results in an imputed multiplier of 1.42. The Court finds that the proposed fees are reasonable, given the risks inherent in these representative actions. Litigation costs not to exceed \$65,000 are reasonable and are approved. Settlement administration costs not to exceed \$34,990.00 are reasonable and are approved.

The requested representative payment of \$10,000 for each representative plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Considering all of the factors, particularly the size of the settlement, the full requested payment is approved.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is **granted**.
3. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
5. Plaintiffs’ counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing, and is ordered to submit a compliance

statement one week before the compliance hearing date.

6. Five percent (5%) of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

No appearance is required at the hearing on July 22, 2026.

8. 9:00 AM CASE NUMBER: C23-02401

CASE NAME: KIARA ROSS VS. KOTLIER ERNEST M.

HEARING ON DEMURRER TO: CROSS COMPLAINT

FILED BY: GARDEN COURT APARTMENTS, LLC

TENTATIVE RULING:

Before the Court is a demurrer by cross-defendants Doug Smith, Fuller Properties, LLC, and 21 other entity cross-defendants to the cross-complaint by Sequoia Equities, Inc. and Alder Creek Management, Inc.. For the reasons set forth, the hearing on the demurrer is continued to **1:30 p.m. on August 26, 2026**. The parties shall meet and confer in good faith by telephone, by videoconference, or in person **by August 10, 2026**, and the demurring parties shall file a supplemental declaration attesting to their compliance with this order **by August 14, 2026**.

Inadequate Meet and Confer

Code of Civil Procedure section 430.41(a) requires the party intending to file a demurrer to meet and confer with the party whose pleading is being challenged in person, by videoconference, or by telephone at least five days prior to the deadline for filing the demurrer and to file a declaration attesting to the parties' compliance with the requirement. (Code Civ. Proc. § 430.41(a) and (b).) A meet and confer through the exchange of letters or emails does not satisfy the meet and confer requirements of Code of Civil Procedure section 430.41.

In support of the demurrer, cross-defendants filed a declaration of counsel, Mr. Rupprecht, which attaches an exchange of letters between counsel regarding the grounds for demurrer and the reasons the cross-complainants contend the grounds lack merit, and addressing the parties' obligation to meet and confer in accordance with the Code. (Rupprecht Decl. Exhs. B and C.) In his November 4, 2025 letter, Mr. Rupprecht advised counsel for the cross-complainants that he was going to be starting a court trial on November 10, 2025 and that he would have limited availability "until the end of the month." (Rupprecht Decl. Exh. B.) Counsel for cross-complainants responded by letter dated November 7, 2025 and invited Mr. Rupprecht to provide dates and times when he would be available to conduct the meet and confer, given Mr. Rupprecht's trial. (Rupprecht Decl. Exh. C ["Given your professed limited availability, I would ask you to provide us your dates and times of availability in the coming week."].)

Mr. Rupprecht does not declare that he responded to that letter with dates and times when he was available. Rather, by implication, he acknowledges there was no call, videoconference, or in person meet and confer before he filed the demurrer more than a month later on December 12, 2025, as he states that the parties did not "arrange" a meet and confer phone call before he filed the demurrer, but that he "intends to meet and confer by telephone before Cross-Complainants' opposition would be due." (Rupprecht Decl. ¶ 20.) Mr. Davidson declares in his declaration in opposition to the demurrer that his office never received a response to the November 7, 2025 letter, and that Mr.

Rupprecht did not attempt to meet and confer before the opposition deadline. (Davidson Decl. ¶¶ 4-6.) The reply does not contest these facts but asserts that the November 4, 2025 was the attempt to meet and confer. (Reply pp. 2-3.) A meet and confer letter alone without a phone call, videoconference, or in person meeting does not satisfy the statute.

9. 9:00 AM CASE NUMBER: C23-02578
CASE NAME: DAVID HAMMOND VS. DOES 1 THROUGH 100, INCLUSIVE
HEARING IN RE: MOTION FOR LEAVE TO AMEND COMPLAINT AND CONTINUE TRIAL DATE
FILED BY:
TENTATIVE RULING:

Before the Court is a motion by plaintiffs David Hammon and Hal Seibert for leave to amend their complaint and to continue the trial date. For the reasons set forth, the motion is **granted** on the terms set forth below.

Background

This action involves a dispute as to whether there is a public easement burdening the property located at 2354 Alameda Diablo in Diablo ("Disputed Property"). Plaintiffs contend the easement is approximately 25 feet wide by 100 to 125 feet long (the "Disputed Easement" or "Cut-Through") reflected in the Minor Subdivision Map MS 263-78 ("Map MS 263-78") recorded September 19, 1979 in Book 81, Page 1 of Parcel Maps in the Official Records of Contra Costa County. Map MS 263-78 refers to an offer of dedication of the strip of land for "riding and hiking." (FAC ¶¶ 3, 5, 9-11, 17, 18, and Exh. B.)

When the complaint was filed, U.S. Bank National Association was named as a defendant because U.S. Bank was the title holder of the Disputed Property. U.S. Bank later sold the Disputed Property to defendant DeEtte R. Sipos, who appears in the action individually and as Trustee of The DeEtte R. Sipos Trust Under The EHR QPRT dated 3/26/2003. U.S. Bank was dismissed from the case on June 24, 2025. Sipos was named as a defendant when Plaintiffs filed their operative first amended complaint ("FAC") on September 6, 2024. Sipos filed an answer to the FAC on November 13, 2024, and later an amended answer.

The FAC includes two causes of action for declaratory relief which have been dismissed by Plaintiffs (Req. for Dism. filed 6/2/2025), a cause of action for quiet title to the Disputed Easement, and a cause of action for interference with the Disputed Easement. A preliminary injunction was issued on July 29, 2025 by which an approximate two foot section of fence was ordered removed from the Disputed Property pending trial. Trial is presently set for August 24, 2026.

Legal Standards for Motion for Leave to Amend

The Court has broad discretion to grant leave to amend a pleading at any stage in a case. (See Code Civ. Proc. § 473(a) [court may allow amendment "in furtherance of justice, and on any terms as may be proper"].) (See *also* Code Civ. Proc. § 576 ["Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order."].) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission

to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. [Citations omitted.]" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530.) California has a liberal policy of allowing amendments to pleadings; it is a rare case when leave to amend should be denied, particularly when there is no showing of prejudice to the other side. (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158; *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488.)

Legal Standards for Trial Continuance

Rule 3.1332 of the California Rules of Court addresses the grounds for a motion to continue a trial date. The Rule provides that trial dates are "firm" and continuances "disfavored," but the Rule allows a party to move for a continuance of the trial date "as soon as reasonably practical once the necessity for the continuance is discovered." (Cal. R. Ct., Rule 3.1332(a), (b) and (c).) "The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." (Cal. R. Ct., Rule 3.1332(c).) Rule 3.1332 has a nonexclusive list of facts that may demonstrate "good cause" to continue a trial date. The list includes, among other facts, "[a] significant, unanticipated change in the status of the case as a result of which the case is not ready for trial." (Cal. R. Ct., Rule 3.1332(c) (7).)

Rule 3.1332 directs the Court to "consider all the facts and circumstances that are relevant to the determination," and sets forth another nonexclusive list of factors for the Court to examine. (Cal. R. Ct., Rule 3.1332(d).) These factors include: "(1) The proximity of the trial date; [¶] (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party; [¶] (3) The length of the continuance requested; [¶] (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance; [¶] (5) The prejudice that parties or witnesses will suffer as a result of the continuance; [¶] (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay; [¶] (7) The court's calendar and the impact of granting a continuance on other pending trials; [¶] (8) Whether trial counsel is engaged in another trial; [¶] (9) Whether all parties have stipulated to a continuance; [¶] (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and [¶] (11) Any other fact or circumstance relevant to the fair determination of the motion or application." (Cal. R. Ct., Rule 3.1332(d)(1)-(11).)

"The granting or refusal of a continuance is a matter of discretion with the trial court and its ruling will not be disturbed unless a clear abuse of that discretion is shown. [Citation omitted.]" (*In re Marriage of Hinman* (1997) 55 Cal. App. 4th 988, 1002.) (*See also Schlothan v. Rusalem* (1953), 41 Cal. 2d 414, 417.)

Sipos Request for Judicial Notice

Sipos has requested the Court take judicial notice of prior pleadings and orders filed in the case. (Sipos RJN Exhs. 1-18.) The Court notes that the March 19, 2025 Wooten Opposition to the renewed motion for preliminary injunction (Sipos RJN Exhs. 8 and 9) was withdrawn by Wooten on March 24, 2025. (Not. of Withdrawal filed 3/24/2025.) The Court grants the unopposed request, with the exception of RJN Exhibits 8 and 9, subject to the applicable limitations on the scope of judicial notice. (Evid. Code § 452(d); *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice

does not extend to the truth or proper interpretation of a pleading to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same]; *Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1569 [judicial notice of prior order or judgment].)

Objection to Sipos Overlength Opposition

Plaintiffs object to the Sipos opposition memorandum. which is approximately 18 pages, 3 pages over the 15-page limit for motions, other than summary judgment motions. (Cal. R. Ct., Rule 3.1113(d).) Sipos did not ask for leave to file the overlength brief. (Cal. R. Ct., Rule 3.1113(e).) The Court in its discretion will consider the brief. (Cal. R. Ct., Rule 3.1113(g).)

The Motion and Opposition

A. Motion for Leave to Amend

The motion is supported by a declaration of Plaintiffs' counsel, Kevin Brodehl, in compliance with Rule 3.1324 of the California Rules of Court. With regard to the request for leave to file a second amended complaint ("2AC"), the declaration includes a copy of the proposed 2AC and a "redlined" version of the 2AC marked to show the changes from the FAC. (Brodehl Decl. Exhs. A and B.) The primary substantive amendment Plaintiffs propose to make in the 2AC is to allege that, in addition to an express offer of dedication with implied acceptance by public use, there was an implied offer of dedication and acceptance based on the use of the land comprising the Disputed Easement prior to 1972.

The hearing on Plaintiffs' motion for summary judgment was scheduled for June 17, 2026. The Court's tentative ruling denying the motion for summary judgment became the order of the Court on June 17, 2026, and Plaintiffs filed their motion for leave to amend less than two weeks later on June 30, 2026. Within less than 10 days after that, the parties, to their credit, had reached a stipulation setting a schedule for filing of papers and the hearing on this motion, and adjusting pre-trial deadlines in the interests of efficiency and avoidance of unnecessary expense. (Brodehl. Decl. Exh. E [stipulation executed 6/26/2026].)

Plaintiffs have explained the need for the amendments in light of the following: (a) Sipos's March 2025 responses to a request for production of documents that omitted the "Condition 15" document relied on in her opposition to the summary judgment motion (Brodehl Decl. ¶ 19); (b) the June 17, 2026 order denying Plaintiffs' motion for summary judgment; and (c) arguments raised by Sipos in opposition to the motion for summary judgment regarding revocation of the offer of the easement based on the erection of fencing at the end of the Cut-Through and the scope of permitted uses of the "riding" easement based on conditions imposed on approval of the subdivision of the Disputed Property when the subdivision map was approved and recorded, which Plaintiffs contend had not been asserted in Sipos's responses to discovery or in Sipos's answer. (Brodehl Decl. ¶¶ 7-10, 18-20.)

Plaintiffs also explain why the "implied easement" based on pre-1972 use was "superfluous" until the foregoing arguments were asserted by Sipos in opposition to the motion and relied on in part by the Court in denying their motion for summary judgment. (Brodehl Decl. ¶ 10.) They contend they acted diligently in seeking leave to amend based on the foregoing events. They contend the underlying facts of pre-1972 use were alleged in the FAC, and they have already produced tens of thousands of pages

of documents comprising all the records available to Plaintiffs regarding the Disputed Easement. (Brodehl Decl. ¶ 20.) The continuance of the trial date that would be necessitated by allowing Plaintiffs to file the 2AC will minimize any prejudice to Sipos by providing additional time for her to prepare for trial and conduct any discovery should she wish to, though she has not conducted any depositions to date, and only served her first written discovery on April 8, 2026. (Brodehl Decl. ¶ 20.)

B. Motion to Continue Trial

Plaintiffs' motion to continue the trial is made on the ground that there was a "significant, unanticipated change in the status of the case." (Cal. R. Ct., Rule 3.1332(c)(7).) The "unanticipated change" is based on the Court granting them leave to amend to file the 2AC, primarily because the 2AC would have to be re-served by publication on the "persons unknown" to support a binding, *in rem* determination under the quiet title statutes. (Code Civ. Proc. §§ 415.50 [service by publication], 471.5 [requiring service of amended complaint on affected parties], 762.010, 762.020 [naming "all persons unknown"], 762.060, 763.010, and 763.020 [publication and posting].)

If leave to file the 2AC is granted, a trial continuance would be warranted for "good cause" to provide the time necessary for defendant Sipos to file an answer to the 2AC, for the "persons unknown" with an interest in the Disputed Property to be served by publication and to respond, and for Sipos to conduct any additional discovery she determines may be warranted in light of the amendments. As a practical matter, the trial would necessarily have to be continued for approximately 90 days.

C. The Sipos Opposition

Sipos argues that leave to amend should be denied because Plaintiffs are seeking to add a "second, different easement" claim based on an implied easement arising from public use prior to 1972. (Opp. p. 2, ll. 5-7.) Sipos argues Plaintiffs previously characterized the implied easement prior to 1972 as superfluous claim and a theory not relevant to their claim that the public easement arose from the express offer of dedication in the 1979 recorded subdivision map which was impliedly accepted by public use. (Plaintiffs explain that their argument in that regard was in response to arguments that Civil Code section 1009 bars Plaintiffs' easement claim based on an express offer of dedication and implied acceptance.)

Sipos's primary opposition is that Plaintiffs were aware of the availability of the alternative implied easement theory or claim but did not pursue it, and that they are only seeking to assert the theory now because of the Court's June 17, 2026 ruling on their summary judgment motion. Sipos argues the Plaintiffs made a tactical or strategic decision to forego the implied easement theory (until now), that the delay in asserting the theory is unexcused, and that Sipos will be prejudiced. She disputes that Plaintiffs were surprised or unaware the contention that the offer of dedication may have been revoked prior to 2007 or that Condition 15 for the approval of the subdivision in 1979 limited the allowed uses of the easement, citing documents subject to her RJN. Sipos nevertheless implicitly concedes that her discovery responses, particularly her response to Form Interrogatory No. 15.1, did not cite either the revocation by fencing of the Disputed Property when the property was developed or Condition 15. (Opp. pp. 11-12.)

The Court's Analysis

A. Motion for Leave to Amend

Considering the motion for leave to amend first, Plaintiffs concede factual allegations regarding the length of time the Disputed Easement has been used, who has used it, and for what purposes, have been part of the allegations of the complaint and then the FAC, including Plaintiffs' contention that there has been a public use or dedication for roughly a century based on the recorded public right of way at one end of the Disputed Easement. (*See, e.g.*, Compl. ¶¶ 8, 9, 11, 16; FAC ¶¶ 10, 11, 12, 14.) Whether the evidence supports a potential inference of revocation of the offer of dedication, including the evidence of fencing on the property dating before 2007, is an issue raised and addressed in the proceedings on Plaintiffs' initial and renewed motions for preliminary injunction. (2-7-25 Min. Order PDF pp. 9-10; 7-29-25 OAH p. 26.) The scope of permitted uses of the Disputed Easement based on the meaning of the term "riding" in the recorded offer of dedication has also been an issue, as reflected in the factual allegations of the FAC and also explicitly in Plaintiffs' fourth cause of action for declaratory relief in the FAC, now dismissed. (FAC ¶¶ 9, 11 and 13 [easement for "riding"], 14, 15, 36; 2-7-25 Min. Order PDF p. 8; 7-29-25 OAH p. 20.)

1. Delay in Presenting the Implied Easement Claim

Notably, delay alone is generally not sufficient to deny leave to amend in light of the policies underlying the amendment statutes. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565 [reversing judgment on the pleadings for defendant after plaintiff's motion to amend made on the day of trial was denied].) Plaintiffs have asserted throughout the case that the Disputed Easement has been used by the public for roughly 100 years. Use of the easement for recreational purposes preceding 1972 is not a newly discovered fact, nor does it appear that Plaintiffs were not aware that an implied easement theory could have been asserted when they filed their FAC. However, it also seems true that the facts regarding the use of the Disputed Easement over decades preceding 1972 only took on new significance to Plaintiffs based on Sipos's opposition to the motion for summary judgment, and then the Court's June 17, 2026 ruling denying their motion for summary judgment on June 17, 2026. (*See Brodehl Decl.* ¶¶ 8-10.)

Sipos was a subsequent purchaser of the Disputed Property who bought with full knowledge of the pending litigation. She was joined in the action in September 2024 with the filing of the FAC and has participated in defendant only since November 2024, roughly 20 months ago.

While Sipos contends Plaintiffs knew all along about the implied dedication theory/claim and could have asserted it, Sipos also does not dispute that her written discovery responses to a "state all facts" interrogatory did not include the revocation by fencing in 1980 contention or Condition 15, only making those defenses fully explicit in her opposition to the summary judgment filed at the end of April 2026. There is some dispute whether the lack of revocation of the offer of dedication when the public impliedly accepted the offer of dedication is an affirmative defense that Sipos failed to adequately plead in her answer until her opposition to the summary judgment clearly articulated that position, though arguably that the offer was still open when the public accepted it may be part of the proof essential for Plaintiffs' claim. The Court does not need to resolve that issue on this motion. Based on the Court's intention to grant leave to amend as stated herein, the issue may become moot should Sipos file a new answer to the 2AC that addresses these contentions.

2. Prejudice and Discovery Issues

Sipos argues she is prejudiced. She argues that the amendment will necessitate discovery into a new field of inquiry (pre-1972 use) and that evidence regarding such use is "vanishing." Sipos argues in her opposition memorandum that there is prejudice based on a loss of available evidence, with witnesses to the use of the land in the 1960s being in their 80s and 90s. (Opp. p. 14.) She argues one witness, Robert Tiernan, Sr. who was the plaintiff in the related action filed in 2017 (MSC17-02529), has died, and that an attorney for the Diablo Community Services District refused to testify because he cannot recall events dating back to that time period. (Opp. p. 14.)

Notably, these positions are stated in argument, without evidence that Sipos in fact intends to seek any discovery or depose any witnesses regarding the implied easement claim. The Court notes that the renewed motion for preliminary injunction and motion for summary judgment included roughly 60 declarations by residents and others regarding the use of the Disputed Easement. There are many declarations that were filed in support of the renewed motion for preliminary injunction in 2025 and in support of the motion for summary judgment in 2026 from witnesses who declared that they used the Cut-Through prior to 1972; there is no evidence before the Court that those witnesses are not available to be deposed if Sipos wishes. (See L. Fluhrer Decl., L. Forman Decl.; P. Gilbert Decl.; K. Green Decl.; C. James Decl.; S. Osmer Decl.; T. Parker Decl.; B. Powers Decl.; T. Rei Decl.; T. Trambly Decl. filed in support of summary judgment motion.) Indeed, it would appear that Plaintiffs would be the parties disadvantaged if witnesses are no longer available, given the burden of proof.

It is not clear from the evidence in the record that Sipos wants or needs additional discovery. Plaintiffs' counsel has filed a declaration attesting that they have produced over 96,000 pages of records to Sipos, records which Brodehl attests include any documents in their possession related to the public easement from any time period. (Brodehl Decl. ¶ 20.) Brodehl declares that Sipos propounded her first written discovery in the case on April 8, 2026, that she produced "scant" documents to Plaintiffs (approximately 295 pages) which did not include Condition 15 and largely consisting of documents related to her purchase of the Disputed Property, and that no depositions have been taken by Sipos. (Brodehl Decl. ¶¶ 18-20.)

To the extent the proposed 2AC adds "ancillary relief" with respect to the quiet title claim, including scope of use of the easement and injunctive relief, and a "secondary" easement for maintenance of the trail, if the public easement is established, the relief is within the claims alleged and issues raised in the FAC. Clearly, whether the easement for "riding and hiking" includes bicycle riding has been one of the issues repeatedly raised in the case.

To the extent the ancillary relief raises new issues such as maintenance rights or duties, it seems appropriate to allow leave to amend so that if the public easement is established, these related issues can be resolved in order to grant complete relief regarding the Disputed Easement and avoid a multiplicity of suits. If Sipos is correct that a maintenance easement cannot be awarded as ancillary relief even if the public easement is established, then she will have an opportunity to present applicable legal authority and evidence in support of that position. Sipos has not shown that the approximate 90-day continuance that would result from granting leave to amend is inadequate to allow her to conduct whatever additional investigation, discovery, or research may be required to address the implied easement and ancillary relief proposed to be added in the 2AC.

3. Futility

Sipos argues that the amendment to add the implied easement theory is futile, as Plaintiffs will not be able to prove the use necessary to establish an implied easement under applicable law, including *Friends of Hastain Trail v. Coldwater Development, LLC* (2016) 1 Cal.App.5th 1013 and *Friends of the Trails v. Blasius* (2000) 78 Cal.App.4th 810. The determination of whether Plaintiffs can prove an implied easement is better made based on an evidentiary record, not on a motion for leave to amend to assert the theory. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760-761; *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

4. Cases Denying Leave to Amend Do Not Support Denial in This Case

Sipos cites three decisions to support her contention that leave to amend should be denied, all of which are factually inapposite or distinguishable. In *Falcon v. Long Beach Genetics, Inc.* (2014) 224 Cal.App.4th 1263, plaintiffs alleged a claim for negligence based on a DNA paternity test. The defendant moved for summary judgment, which the trial court granted, and the trial court denied the plaintiffs' oral request for leave to amend made at the summary judgment hearing after it was apparent summary judgment would be granted to defendant. The Court of Appeal affirmed, citing, among other grounds, that the plaintiffs' proposed amendment was factually inconsistent with other facts they had alleged and other factual admissions they had made in opposing the summary judgment motion, such that the sham pleading doctrine was in play. (*Id.* at 1280-1281.) Unlike the plaintiffs in *Falcon*, Plaintiffs are not seeking leave to amend to avoid an adverse outcome on a defendant's summary judgment motion, nor are they asking to plead facts inconsistent with their FAC, or a theory that is inconsistent with, rather than merely another alternative to, their express offer of dedication and implied acceptance theory. Similarly, in *Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, when the defendant's motion for summary judgment was going to be granted, the plaintiffs asked the trial court for leave to amend to allege a federal claim after the litigation had been pending for four and a half years. The plaintiffs had chosen not to plead the federal labor claim in order to avoid giving rise to federal question jurisdiction and removal of the action to federal court. (*Id.* at 739.)

In *Green v. Rancho Santa Margarita Mortgage Co.* (1994) 28 Cal.App.4th 686, the defendant appealed a judgment for the plaintiff for race discrimination under the Unruh Civil Rights Act. The Court explained a long and tortured procedural history of the action that led to a prior appeal and reversal on a procedural ground, and a return of the case to the trial court for a new trial against the mortgage broker. (*Id.* at 690-691.) The Court of Appeal affirmed the trial court's denial of the defendant's motion for leave to amend its answer to allege its own negligence as an affirmative defense, stating that the defendant's "original answer left no room for negligence as an explanation for its failure to find the Greens a loan," citing specific contrary facts alleged in the original answer which was verified by the defendant's officer. (*Id.* at 692.) Further, based on the procedural posture, the timing of the defendant's request to amend to allege the defendant's negligence as an affirmative defense was made after the plaintiffs were foreclosed from amending their complaint to add a claim for negligence, and the defendant offered no excuse for the delay. The Court affirmed the denial of leave to amend the answer, among other things finding that "there is no doubt that an amendment would have contradicted both the mortgage broker's previous verified pleading . . . and required further

discovery, requiring the Greens to substantially redo their trial strategy." (*Id.* at 693.)

The "moving target" rationale of those cases arose in a context different from this case, when a defendant defeated the plaintiff's pleaded claims, and the plaintiff attempted to avoid entry of judgment for the defendant by asking for leave to amend once the trial court's intention to grant summary judgment was clear. Plaintiffs were not facing a loss of their claims; they just failed to prove that they were entitled to judgment without trial because there were no material fact disputes. They ask to include a theory supporting the existence of a public easement in the same location and burdening the same property based on use already alleged in the FAC.

The circumstances in this case also do not compare to those in other cases in which leave to amend was denied and the denial upheld on appeal, cases on which the cases cited by Sipos rely. (See *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488 [affirming denial of leave to amend to add claim after the date the case was originally set to go trial, and which would have required new witnesses and discovery]; *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175-176 [denial of request for leave to amend made over five years after suit commenced, and during oral argument on summary judgment motion]. (See also *Duchrow v. Forest* (2013) 215 Cal.App.4th 1359, 1377-1380 [denying request for leave to amend complaint made on the fourth day of a five day trial with no explanation for the delay]; *City of Stanton v. Cox* ('989) 207 Cal. App. 3d 1557, 1564 ["A party who waits 18 months before attempting to amend, and then does so only after trial has commenced, and who offers no excuse for the failure, can hardly complain when the request to amend is denied. Under these circumstances, we cannot say the trial judge abused his discretion." (Emphasis added.)]; *Record v. Reason* (1993) 73 Cal.App.4th 472, 486 [delay of three years].)

5. Conclusion: Leave to File the 2AC Should Be Granted

The issues at stake in the case involve matters beyond the personal interests of the parties. Plaintiffs are seeking to establish the existence of a public easement over the Cut-Through that prior evidence before the Court suggests has been used for decades both by Diablo residents and by members of the public at large, though whether the public was actually crossing over the Wooten Property next door and other issues relevant to the establishment of a public easement must be litigated at trial. Plaintiffs have established what the Court would characterize as a compelling need to amend to include the implied easement theory so that the full panoply of relevant issues and theories concerning the Disputed Easement can be addressed.

Even if the implied easement is considered a new claim and not just a new theory, Sipos has not shown that any prejudice cannot be minimized or eliminated by the proposed three-month continuance of the trial. The continuance would give Sipos roughly four months from the date of this hearing to prepare to meet the additional theory. Sipos has not presented any evidence that she will be foreclosed from obtaining discovery and additional evidence through documents or depositions of the witnesses who have already attested to their use of the Cut-Through during the pre-1972 time frame.

Sipos also has not disputed Plaintiffs' estimate that a three-month continuance of the trial would be adequate. Weighing the benefits and significance of the proposed amendments in the 2AC against the claims of prejudice from delay or the need for more discovery, the Court exercises its discretion to

grant Plaintiffs' motion for leave to amend to allow Plaintiffs to file the 2AC, on the terms set forth in this ruling.

B. Motion to Continue Trial

Allowing the filing of the 2AC will change the status of the case sufficiently to warrant continuance of the trial, as service by publication will be required for the "unknown persons" defendants. Any additional discovery can proceed during the time period for publication and response by the "unknown persons." The motion was filed approximately seven weeks before the scheduled trial date. No prior continuances or extensions of time have been granted. Plaintiffs seek a continuance of only approximately three months, just enough to effectuate service by publication and allow for the response by any unknown persons. Based on the prior service by publication, it seems unlikely there will be a response.

The Court concludes that the need for the continuance outweighs any prejudice caused by the delay, considering that the action is entitled to a trial preference based on the preliminary injunction issued July 29, 2025. The Court finds the interests of justice warrant the continuance, predicated upon the Court allowing the filing of the 2AC, in light of, among other things, the public interests at stake in the claims being asserted. The Court will attempt to minimize any prejudice by providing a trial date approximately three months from the current date. Weighing the circumstances presented, the relevant factors, the concerns regarding delay and prejudice to the defendant, and the interests of the Plaintiffs in presenting at trial all grounds supporting the existence of a public easement, the Court finds the motion for continuance of the trial for good cause should be **granted** pursuant to Rule 3.1332.

Conclusion and Ruling

The Court **grants** the motion for leave to amend and **grants** the motion to continue the trial and imposes the following terms and conditions on granting the motion: (1) Plaintiffs shall file and serve their 2AC on the existing defendant(s) **by July 24, 2026**; (2) Plaintiffs shall present to the Court an *ex parte* application for service by publication or a stipulation and proposed order for service by publication **by no later than July 29, 2026**; and (3) the parties **shall appear at the hearing, in person or by Zoom**, to address scheduling the continued trial and issue conference dates.

10. 9:00 AM CASE NUMBER: C23-02586

CASE NAME: FLORENCE DROCAN VS. FULL CIRCLE OF CHOICES

***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM**

FILED BY:

***TENTATIVE RULING**

This Compliance Hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on July 9, 2025. No compliance statement or declaration was prepared by Plaintiff's Counsel as ordered by the Court.

This matter is **continued** to August 19, 2026 at 9:00 a.m. On August 19, 2026, Plaintiff's Counsels, Kane Moon, Esq., is **ordered to appear in person and ordered to show cause** as to why they should

not be held in contempt for failing to comply with the Court's order to prepare and file a compliance statement. No remote appearance is authorized for this hearing.

The OSC will be discharged, and Counsel may appear remotely at the August 19, 2026 hearing, if Counsel complies with the Court's order by filing and serving a compliance statement prepared by Counsel or the Class Action Administrator with the Court at least ten (10) court days before the hearing.

11. 9:00 AM CASE NUMBER: C23-02686
CASE NAME: ALICIA FRANCIS VS. BAY STANDARD MANUFACTURING, INC.
***HEARING ON MOTION IN RE: FINAL COMPLIANCE HEARING SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING:

This Compliance Hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on September 19, 2025.

Upon review of the compliance report filed by Plaintiff's Counsel, and the declaration filed by Nicole Bench of Apex Class Action certifying disbursement filed on May 4, 2025, the Court determines that Plaintiff has complied with the Court's orders.

Good cause appearing, the Court makes the following orders:

1. The Court orders the release of the 5% retention of attorney's fees in the amount of \$16,012.50 to Plaintiff's Counsel. The Class Action Administrator shall release said fees no later than ten (10) days from the date of this Order.
2. No appearance is required at the hearing on July 22, 2026.

12. 9:00 AM CASE NUMBER: C23-03095
CASE NAME: DAVID KINSLEY VS. S. T. M. AUTOMOTIVE
***HEARING ON MOTION IN RE: FOR ORDER APPROVING SETTLEMENT**
FILED BY: KINSLEY, DAVID W.
TENTATIVE RULING:

Summary

Plaintiff David W. Kingsley, individually and on behalf of others similarly situated, brings this Motion for Order Approving PAGA Settlement against Defendant S.T.M Automotive. Since this motion is unopposed, this Motion is **granted** as set forth herein. No appearance is required at the hearing on July 22, 2026.

Background and Settlement Terms

This action was commenced on December 7, 2023, when Plaintiff David W. Kingsley filed a class action Complaint against Defendants S. T. M. Automotive d/b/a S&S Distributors ("Defendant"), alleging

violations of the California Labor Code including failure to pay wages for all time worked, failure to pay overtime, failure to authorize or permit meal and rest periods and pay associated premiums, failure to pay accrued vacation and sick pay, failure to indemnify for employment-related expenditures, failure to timely pay wages during employment and upon termination, and failure to provide accurate wage statements. See Complaint; Lavi Decl. ¶ 4. On the same date, Plaintiff provided the required PAGA notice to the Labor and Workforce Development Agency ("LWDA") alleging violations of Labor Code provisions related to minimum and overtime wages, meal and rest periods, timely payment of wages, accurate wage statements, sick pay, and vested vacation wages. Lavi Decl. ¶ 3, Ex. 1. On February 13, 2024, Plaintiff filed a First Amended Complaint incorporating a cause of action under the Private Attorneys General Act ("PAGA"). See First Amended Complaint; Lavi Decl. ¶ 5.

Following the filing of the First Amended Complaint, the Parties agreed to an informal stay of discovery pending private mediation. In preparation for mediation, Defendant produced time and payroll records for randomly selected non-exempt employees, the employee handbook containing relevant policies, and information regarding PAGA Members, including the total number of pay periods at issue and the number of current and former employees. Lavi Decl. ¶ 6. On August 26, 2024, the Parties attended a full-day mediation with Daniel Turner, Esq., during which the Parties exchanged arguments regarding their respective claims and defenses. Following mediation, the Parties agreed to resolve the action on an individual basis for Plaintiff, dismiss the class claim allegations without prejudice, and enter into a PAGA-only settlement. Lavi Decl. ¶ 7, Ex. 2.

The Parties executed the "Private Attorneys General Act – Settlement Agreement" (the "Settlement Agreement"), attached as Exhibit 2 to the Declaration of David Lavi ("Lavi Decl."). The Settlement resolves PAGA claims on behalf of "PAGA Members," defined as all current and former hourly-paid, non-exempt employees who were employed by Defendants in California at any time during the PAGA Period of December 7, 2023, through August 26, 2024. Settlement Agreement ¶¶ 5-6. There are approximately 11 PAGA Members. Lavi Decl. ¶¶ 9-10. The Settlement provides for a non-reversionary Gross Settlement Amount of \$5,000.00. Settlement Agreement ¶¶ 1.10, 3.1; Lavi Decl. ¶ 11.

The Gross Settlement Amount shall be allocated as follows, subject to Court approval: (1) Plaintiff's Counsel Fee Payment of \$500.00; (2) Plaintiff's Counsel Litigation Costs Payment of \$75.00; and (3) Settlement Administrator Payment to Phoenix Settlement Administrators ("Phoenix") of up to \$1,850.00 for costs including translating the Notice from English to Spanish, preparing and mailing cover letters and checks, performing skip-traces, remailing returned payments, and handling inquiries. Settlement Agreement ¶ 3.2; Lavi Decl. ¶ 12. After deduction of these amounts, the Net Settlement Amount is estimated to be \$2,575.00. Settlement Agreement ¶ 3.2.3; Lavi Decl. ¶ 12.

The Net Settlement Amount shall be distributed with seventy-five percent (75%), or approximately \$1,931.25, paid to the LWDA, and twenty-five percent (25%), or approximately \$643.75, paid to PAGA Members on a pro rata basis based upon the number of pay periods worked by each Aggrieved Employee during the PAGA Period. Settlement Agreement ¶ 3.2.3; Lavi Decl. ¶ 12. Individual PAGA Payments will be treated as miscellaneous income for which a Form 1099 will be issued. Settlement

Agreement ¶ 3.2.3.2; Lavi Decl. ¶ 14. Defendants shall deposit the Gross Settlement Amount into a Qualified Settlement Fund established by the Settlement Administrator, and within fourteen (14) calendar days of receipt, the Settlement Administrator shall issue payments to PAGA Members, the LWDA, Plaintiff's Counsel, and itself. Settlement Agreement ¶¶ 4.3-4.4; Lavi Decl. ¶¶ 16-17.

All checks to PAGA Members shall remain valid and negotiable for 180 days from the date of issuance. If any checks are not cashed within 180 days of mailing, those funds shall be transmitted to the Controller of the State of California to be held pursuant to the Unclaimed Property Law, California Code of Civil Procedure § 1500, et seq., resulting in no "unpaid residue" under California Code of Civil Procedure § 384. Settlement Agreement; Lavi Decl. ¶ 17. The requested attorneys' fee award of \$500.00 (10% of the Gross Settlement Amount) and costs of \$75.00 are reasonable and appropriate under California Labor Code section 2699(g)(1), reflecting the work performed on a contingency basis, the risks incurred, and the results obtained for the State of California and Aggrieved Employees. Lavi Decl. ¶¶ 46, 54.

Plaintiff contends that the Settlement represents a fair, adequate, and reasonable resolution of this action given the risks inherent in continued litigation, including the unfortunate passing of Plaintiff which would require a motion to appoint a new representative, potential challenges to manageability, disputed merits, and the possibility of drastic reduction in penalties. In contrast, this settlement guarantees immediate recovery for the State of California and PAGA Members while preserving PAGA Members' individual wage claims. Pursuant to California Labor Code § 2699(l)(2), a copy of the proposed Settlement and information regarding the approval hearing was submitted to the LWDA on December 5, 2025. Lavi Decl. ¶ 7, Ex. 3.

Analyses

PAGA allows an "aggrieved employees" to bring a civil action on behalf of himself or herself, other aggrieved employees and the State to recover civil penalties which, outside of PAGA, only the LWDA can collect from an employer. Cal. Labor Code § 2699(a). The settlement of a PAGA action requires court approval. See Cal. Labor Code § 2699(l)(2). In reviewing a PAGA settlement, the Court need only ensure that "a negotiated resolution is fair to those affected." *Williams v. Sup. Ct.*, (2017). 3 Cal.5th 531, 549 The court's focus is not the monetary amount which aggrieved employees or the State stand to receive, but on whether the total amount achieves PAGA's objective - "to incentive private parties to recover civil penalties for the government that otherwise may not have been assessed and collective by overburdened state enforcement agencies." See *Ochoa-Hernandez v. CIADERS Foods, Inc.*, 2010 WL 1340777 (N.D. Cal. Apr. 2, 2010) (citing *Arias v. Sup. Ct.*, (2009)). 46 Cal.4th 969, 986). Penalties recovered under PAGA are, in part, to "be distributed to the [LWDA] for enforcement of labor laws [] and for education of employers and employees about their rights and responsibilities under this code [].to supplement the funding to the agency for those purposes." See Cal. Labor Code § 2699(j).

Because a PAGA claim is effectively considered a law enforcement action, it does not have to meet the requirements of a class action. *Arias, supra*, 46 Cal. 4th at 980-988 (affirming lower court's holding

that “plaintiff need not satisfy class action requirements” to assert a PAGA claim). Moreover, because PAGA claim is “a statutory action for penalties brought as a proxy for the State,” “there is no need to protect absent employees’ due process rights[.]” *Williams, supra*, 3 Cal.5th at 546. “PAGA does not make other potentially aggrieved employees parties” to the action and no “due process concerns arise under PAGA because absent employees do not own a personal claim for PAGA civil penalties and whatever personal claims the absent employees might have for relief are not at stake.” *Id.* at 546-47. 17 Accordingly, “[u]nnamed employees need not be given notice of the PAGA claim, nor do they have the ability to opt-out of the representative PAGA claim.”

However, since this matter proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

After review of the proposed settlement, the applicable statutory and decisional authorities, the Court finds good cause to grant this motion. Good cause appearing, the Court makes the following orders.

Ruling

1. Plaintiff’s Motion for Order Approving Settlement Pursuant to the California Labor Code Private Attorney General Act is granted.
2. The Court will execute the proposed order lodged on December 5, 2026, and will request that the Clerk of the Court attach this ruling to the proposed order.
3. The Court orders Counsel to schedule a compliance hearing no later than six months from the date of this hearing. Counsel is ordered to file a compliance statement no later than five (5) court days before the hearing. The Court may vacate the hearing upon review of the compliance statement.
4. No appearance is required on July 22, 2026.

13. 9:00 AM CASE NUMBER: C23-03161

CASE NAME: ALISCHA WILSON VS. INTEX RECREATION CORP.,

***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS AND 2ND AMENDED COMPLAINT
FILED BY: INTEX MARKETING LTD.**

TENTATIVE RULING:

The hearing on this motion is **continued** to January 20, 2027 at 9:00 a.m. in Department 16 by stipulation of the parties. No appearance is required on July 22, 2026.

14. 9:00 AM CASE NUMBER: C23-03218
CASE NAME: CALDELARIA GARCIA VS. BELL-CARTER OLIVE PACKING COMPANY, INC.
***HEARING ON MOTION IN RE: APPROVAL OF PAGA SETTLEMENT**

FILED BY: GARCIA, CALDELARIA

TENTATIVE RULING:

Summary

Plaintiff Candelaria Garcia ("Plaintiff") seeks approval of a PAGA Settlement Agreement (the "PAGA Settlement") entered into with Defendant Bell-Carter Olive Packing Company, Inc. ("Defendant" or "Bell-Carter") (together, the "Parties") in full resolution of the above-captioned litigation (the "Action"). The Motion is unopposed and is **granted**. No appearance is required at the hearing on July 22, 2026.

Background

The proposed PAGA Settlement represents a non-reversionary, all-inclusive gross settlement of \$150,000.00 to resolve claims for civil penalties pursuant to the California Private Attorneys General Act (Labor Code sections 2698, et seq.). The settlement was reached following a full day of mediation with experienced neutral Michael Ludwig, Esq., and subsequent negotiations between Plaintiff and Bell-Carter. The settlement resolves Plaintiff's PAGA claims alleging Defendant's failure to pay all minimum and overtime wages, failure to provide meal periods and authorize rest breaks, failure to indemnify necessary business expenses, failure to timely pay final wages at termination, and failure to provide accurate itemized wage statements.

The PAGA Settlement defines the aggrieved employees or "PAGA Members" as all current or former non-exempt/hourly-paid employees employed by Defendant in California from December 17, 2022 through the date the number of pay periods reaches no more than 9,474, or the date the Court signs an order approving the settlement, whichever is earlier (the "PAGA Period"), with the Parties anticipating an end date of May 3, 2025. The Covered Claims include any and all claims for PAGA penalties of whatever kind or nature which occurred during the PAGA Period that were alleged, or that reasonably could have been alleged, including claims for alleged violations of various Labor Code provisions. Upon Defendant's funding of the Total Settlement Amount, Plaintiff, on behalf of herself and the State of California, and all PAGA Members, shall fully release the Released Parties from the Covered Claims.

The Total Settlement Amount of \$150,000.00 shall be allocated as follows: The PAGA Payment totals \$78,121.80, which shall be distributed with seventy-five percent (\$58,591.35) paid to the California Labor and Workforce Development Agency (LWDA) and twenty-five percent (\$19,530.45) distributed to the estimated 229 PAGA Members. PAGA Members will receive their proportional share via check accompanied by a letter explaining the settlement, with checks remaining valid and negotiable for one hundred eighty (180) calendar days from issuance. Any uncashed checks following this period shall be forwarded to the State of California's unclaimed property fund in the name of the respective PAGA Member. The LWDA has been provided notice of the proposed settlement and has not made any objections thereto.

PAGA Counsel, Moon Law Group, PC, seeks approval of attorneys' fees in the amount of one-third of the Total Settlement Amount, estimated at \$53,333.33. This fee award represents compensation for

counsel's work in prosecuting this action, including investigation of the claims, litigation, and settlement negotiations. The requested fee is consistent with the contingent risk undertaken by counsel and the results achieved for the LWDA and PAGA Members.

PAGA Counsel also seeks reimbursement of actual litigation costs up to a maximum of \$25,000.00, with costs currently incurred totaling \$17,128.20. These costs include \$8,280.00 for Plaintiff's statistician expert, which was necessary to assist in assessing Defendant's realistic exposure; \$7,000.00 for Plaintiff's share of the mediation fee (half of the total \$14,000.00 mediation cost); and \$1,848.20 for filing fees, service fees, and other litigation expenses necessarily and reasonably incurred, including the \$75.00 PAGA filing fee and \$1,494.53 initial complaint filing fee.

The Parties have jointly appointed Phoenix Class Action Administration Solutions as the neutral Settlement Administrator to administer this settlement. The Settlement Administrator shall be paid administration costs not to exceed \$6,000.00, with the Administrator having submitted a not-to-exceed bid of \$4,750.00 for its fees and expenses. The Settlement Administrator shall be responsible for distributing the PAGA Members' share of the settlement and ensuring uncashed funds are properly forwarded to the State's unclaimed property fund.

Defendant shall fund the Total Settlement Amount within ten (10) calendar days after the Effective Date by payment to the Settlement Administrator. The settlement is non-reversionary, meaning all funds paid into the settlement shall be distributed regardless of the number of claims submitted or cashed. The settlement reflects the product of arm's-length negotiations between experienced wage and hour counsel, following sufficient investigation to evaluate the relative strength and value of the PAGA claims, and represents a reasoned compromise based on the risks, expense, complexity, and likely duration of further litigation.

The Court is requested to: (1) approve the PAGA Settlement Agreement; (2) appoint Moon Law Group, PC as PAGA Counsel and approve the requested PAGA Counsel Fees and Costs; (3) appoint Phoenix Class Action Administration Solutions as the Settlement Administrator and approve the Settlement Administration Costs; (4) approve the release of the Released PAGA Claims by the LWDA and the PAGA Members; (5) direct consummation of the PAGA Settlement pursuant to its terms and provisions; (6) dismiss the Action with prejudice and enter Judgment; and (7) retain jurisdiction over the Action and over all Parties to the fullest extent necessary to enforce and effectuate the terms and intent of the PAGA Settlement.

Analyses

PAGA allows an "aggrieved employees" to bring a civil action on behalf of himself or herself, other aggrieved employees and the State to recover civil penalties which, outside of PAGA, only the LWDA can collect from an employer. Cal. Labor Code § 2699(a). The settlement of a PAGA action requires court approval. See Cal. Labor Code § 2699(l)(2). In reviewing a PAGA settlement, the Court need only ensure that "a negotiated resolution is fair to those affected." *Williams v. Sup. Ct.*, (2017). 3 Cal.5th 531, 549 The court's focus is not the monetary amount which aggrieved employees or the State stand to receive, but on whether the total amount achieves PAGA's objective - "to incentive private parties to recover civil penalties for the government that otherwise may not have been assessed and

collective by overburdened state enforcement agencies.” See *Ochoa-Hernandez v. CIADERS Foods, Inc.*, 2010 WL 1340777 (N.D. Cal. Apr. 2, 2010) (citing *Arias v. Sup. Ct.*, (2009)). 46 Cal.4th 969, 986). Penalties recovered under PAGA are, in part, to “be distributed to the [LWDA] for enforcement of labor laws [] and for education of employers and employees about their rights and responsibilities under this code [].to supplement the funding to the agency for those purposes.” See Cal. Labor Code § 2699(j).

Because a PAGA claim is effectively considered a law enforcement action, it does not have to meet the requirements of a class action. *Arias, supra*, 46 Cal. 4th at 980-988 (affirming lower court’s holding that “plaintiff need not satisfy class action requirements” to assert a PAGA claim). Moreover, because PAGA claim is “a statutory action for penalties brought as a proxy for the State,” “there is no need to protect absent employees’ due process rights[.]” *Williams, supra*, 3 Cal.5th at 546. “PAGA does not make other potentially aggrieved employees parties” to the action and no “due process concerns arise under PAGA because absent employees do not own a personal claim for PAGA civil penalties and whatever personal claims the absent employees might have for relief are not at stake.” *Id.* at 546-47. 17 Accordingly, “[u]nnamed employees need not be given notice of the PAGA claim, nor do they have the ability to opt-out of the representative PAGA claim.”

However, since this matter proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

After review of the proposed settlement, the applicable statutory and decisional authorities, the Court finds good cause to grant this motion. Good cause appearing, the Court makes the following orders.

Attorneys' Fees

Plaintiffs’ counsel seek attorneys' fees of \$53,333.33 representing one-third of the total settlement amount, relying on the common fund doctrine. Similarly, litigation costs in the amount of \$8,280.00. Upon review, there is good cause to find that the Settlement appears to be fair, adequate, and reasonable. Good cause, therefore appearing, the Court makes the following orders and ruling.

Ruling

1. The settlement is sufficiently fair, reasonable, and adequate to justify approval. The motion is **granted**.
2. The Court will execute the proposed order lodged on October 10, 2026, and will request that the clerk of the court attach a copy of this ruling to the proposed order.
3. The Court orders Counsel to schedule a compliance hearing no later than six months from the date of this hearing. Counsel is ordered to file a compliance statement no later than five (5) court days before the hearing. The Court may vacate the hearing upon review of the compliance statement.

4. The Court will retain jurisdiction over this action and the Parties to enforce the terms of the PAGA Settlement agreement.
5. No appearance is required at the hearing on July 22, 2026.

15. 9:00 AM CASE NUMBER: C24-01022

CASE NAME: MICHAEL RAY VS. SIMPSON STRONG-TIE CO., INC.

***HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS ACTION SET BY THE COURTROOM**

FILED BY: RAY, MICHAEL

TENTATIVE RULING:

Summary

This tentative ruling is for Lines 15 and 16. Plaintiff Michael Ray ("Plaintiff") individually and on behalf of all others similarly situated moves for Final Approval of the Class Action Settlement ("Settlement") with Defendant Simpson Strong-Tie Co., Inc. ("Defendant"). Plaintiff also seeks approval of its motion for attorney's fees, costs and service award. These motion are **granted**. No appearance is required at the hearing on July 22, 2026.

Background and Settlement Terms

The Court granted preliminary approval of this Settlement on October 23, 2025, provisionally certifying the class and directing notice to the more than 5,000 Settlement Class Members. The Settlement resolves claims against Defendant Simpson Strong-Tie Co., Inc. arising from a data security incident and operates on a claims-made basis with no aggregate cap. Defendant has agreed to pay all Notice and Administrative Expenses, the Fee Award and Expenses, and Service Awards. The Settlement Class consists of 5,746 individuals who were provided notice achieving a 90.67% reach rate through postcard mailings following address verification and skip tracing procedures. No timely exclusion requests or objections were received, and 198 non-duplicate claims were submitted by the February 19, 2026 deadline, representing 3.45% of the class.

The Settlement provides three categories of benefits to eligible claimants.

- First, Settlement Class Members may claim up to \$500 for documented ordinary out-of-pocket losses, including reimbursement for expenses incurred as a direct result of the Data Security Incident, fees for credit reports or credit monitoring, and attested lost time.
- Second, claimants may seek up to \$5,000 for documented extraordinary out-of-pocket losses fairly attributable to the Data Security Incident.
- Third, all Settlement Class Members are eligible to receive two years of Identity Theft Protection and/or Credit Monitoring, including credit monitoring at all three major credit reporting agencies. Additionally, Defendant has implemented and will continue to maintain data security enhancements valued at over \$957,000, including deployment of a Data Security Posture Management System, Zero Trust Endpoint Detection Security application, and increased phishing awareness training and testing.

The Settlement Administrator, Simpluris, Inc., shall process all approved claims and distribute Settlement Payments via mailed checks or electronic fund transfer within sixty days of the Effective Date or within thirty days of claim approval, whichever is later. The Settlement Administrator's total

costs for services in connection with the administration of the Settlement, including fees incurred and anticipated future costs for completion of the administration, will be \$18,000. Defendant shall be responsible for payment of all Settlement Administration costs.

Upon the Effective Date, all Settlement Class Members who have not validly requested exclusion shall be deemed to have fully, finally, and forever released, relinquished, and discharged the Released Parties from all Released Claims as defined in the Settlement Agreement. Settlement Class Members are hereby permanently barred and enjoined from instituting, commencing, or prosecuting any Released Claim against any of the Released Parties. This order, the Settlement Agreement, and the settlement reflected therein shall not be construed as an admission by or against Defendant or any other Released Party of any fault, wrongdoing, or liability, or of the validity of any Released Claim.

The Court finds that the Settlement is fair, reasonable, and adequate, and that the preliminary approval order should be made final. The Settlement is the product of arm's length negotiations between experienced counsel, provides substantial recovery for the class while avoiding significant litigation risks including class certification opposition, summary judgment motions, protracted discovery, trial, and appeals. The data security enhancements provide considerable additional value beyond the monetary relief.

Analysis

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the

additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees and Costs

Plaintiff seeks one-third of the total settlement amount as fees \$240,000 relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Under these guidelines, the Court finds that the requested attorneys' fees and costs are fair and reasonable.

Settlement Class Counsel requests an aggregate award of \$240,000 in attorneys' fees and \$73,497.62 in costs. Counsel incurred 216.2 attorney hours in this litigation, equating to a base lodestar of \$167,924.48, together with total expenses of \$1,888.17. Applying a lodestar multiplier of 1.29 to account for the contingent nature of the representation, the complexity of the litigation, the substantial benefits obtained for the class, and the risks undertaken, yields the requested fee award of \$240,000. The Court finds this multiplier and the resulting fee award to be fair and reasonable compensation for counsel's work in obtaining this substantial settlement.

The Court finds that the requested incentive award of \$2,000 to the named Plaintiff and class representative is reasonable in recognition of the time, effort, and risk undertaken in prosecuting this action on behalf of the class. Under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Considering all of the factors, particularly the size of the settlement, the full requested payment is approved., and hereby approves this Service Award. Settlement administration costs of \$18,000 are reasonable and are approved.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is **granted**.
3. The motion for attorneys, costs, and service award is **granted**.
4. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
5. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
6. Plaintiffs' counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing, and is ordered to submit a compliance

statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

7. No appearance is required at the hearing on July 22, 2026.

16. 9:00 AM CASE NUMBER: C24-01022
CASE NAME: MICHAEL RAY VS. SIMPSON STRONG-TIE CO., INC.
***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS**
FILED BY: RAY, MICHAEL
TENTATIVE RULING:
See Line 15.

17. 9:00 AM CASE NUMBER: C24-01297
CASE NAME: JOEL DE ALBA-PADILLA VS. STAND PETERSON
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY: DE ALBA-PADILLA, JOEL JOSE
TENTATIVE RULING:

Summary

Plaintiffs, Joel Jose De Alba-Padilla and Gerald Keene, ("Plaintiffs") on behalf of themselves and all others similarly situated and aggrieved seek Preliminary Approval of a Class Action Settlement with Defendants Wesco International, Inc., Anixter Inc., Anixter International LLC, and Express Services, Inc. ("Defendants"). The Motion is **granted** as set forth herein. No appearance is required at the hearing on July 22, 2026.

Background and Settlement Terms

The salient terms of the settlement agreement are summarized as follows. Plaintiffs seek Court preliminary approval and certification, for settlement purposes only, a class comprising two distinct groups: (1) the "Anixter Class," consisting of all non-exempt employees employed by Anixter Inc. or Anixter International Inc. in California who worked for Defendants from September 25, 2022, through February 10, 2025; and (2) the "Wesco Class," consisting of all non-exempt employees employed by Wesco International, Inc. and/or Wesco Distribution, Inc. in California who worked for Defendants from May 15, 2020, through February 10, 2025. The Settlement resolves claims for wage and hour violations, including allegations of failure to pay overtime, failure to provide meal and rest periods, failure to pay minimum wages and final wages, failure to provide accurate wage statements, failure to indemnify business expenses, and related claims under the California Labor Code and Unfair Competition Law.

Defendants have agreed to pay a Gross Settlement Amount of \$1,250,000.00, which is subject to escalation if the total number of workweeks worked by class members exceeds 53,690 (representing a 10% increase above the baseline of 48,809 workweeks). In the event of such increase, Defendants may elect either to increase the Gross Settlement Amount proportionally by multiplying the excess workweeks by the Workweek Value of \$25.61, or to terminate the class periods upon reaching 53,690 workweeks. This is a non-reversionary settlement, and Defendants shall pay the employer's share of all applicable taxes separate and apart from the Gross Settlement Amount.

Class Members shall receive *pro rata* distributions of the Net Settlement Fund based upon the total

number of workweeks worked during the applicable class periods, with the Settlement Administrator calculating each Participating Class Member's workweeks by aggregating workweeks from both class periods and subtracting any overlapping periods to avoid double payment. The Settlement Administrator, ILYM Group, Inc., shall be appointed to administer the Settlement, including distribution of class notice and processing of claims, with administration costs not to exceed \$9,950.00 to be paid from the Gross Settlement Amount.

The Settlement further provides for the resolution of Plaintiffs' claims under the Private Attorneys General Act ("PAGA"). Defendants shall pay PAGA penalties in the amount of \$100,000.00, with seventy-five percent (\$75,000.00) allocated to the Labor and Workforce Development Agency and twenty-five percent (\$25,000.00) distributed as Individual PAGA Payments to Aggrieved Employees. The Anixter Aggrieved Employees are defined as non-exempt employees employed by Anixter entities in California from September 25, 2022, through the end of the Anixter Class Period, and the Wesco Aggrieved Employees are defined as non-exempt employees employed by Wesco entities in California from May 15, 2023, through the end of the Wesco Class Period. Individual PAGA Payments shall be calculated based upon the number of PAGA Pay Periods worked, with adjustments made to prevent double payment for any overlapping employment periods.

Class Counsel, David D. Bibiyan and Vedang J. Patel of Bibiyan Law Group, P.C., are preliminarily approved to represent the Settlement Class. Class Counsel may seek attorneys' fees in the amount of thirty-five percent (35%) of the Gross Settlement Amount, which, absent escalation, equals \$437,500.00, together with reimbursement of actual litigation costs not to exceed \$40,000.00, all to be paid from the Gross Settlement Amount. Plaintiffs Joel Jose De Alba-Padilla and Gerald Keene are preliminarily approved as Class Representatives and shall each receive a service award of \$7,500.00, for a total of \$15,000.00, in recognition of their substantial efforts in prosecuting this litigation.

The Settlement Administrator shall distribute Individual Class Payment checks and Individual PAGA Payment checks to eligible claimants within the timeframes specified in the Settlement Agreement. Any uncashed checks remaining after one hundred eighty (180) days from the date of mailing shall be transmitted to the California Controller's Office, Unclaimed Property Fund in the name of the respective Class Member, ensuring that no unpaid residue remains subject to the requirements of California Code of Civil Procedure section 384(b).

Upon final approval and the Effective Date, all Settlement Class Members who do not timely opt out shall be bound by the release provisions set forth in the Settlement Agreement, which shall constitute a complete release and discharge of all claims arising from or relating to the allegations contained in the Operative Complaint and the PAGA Notices. The Court shall retain jurisdiction over the Action to enforce the terms of the Settlement and to adjudicate any disputes arising thereunder.

The Court finds that the proposed Settlement is the product of arm's-length negotiations conducted by experienced counsel following sufficient investigation of the claims, including informal discovery and a full-day mediation before a neutral mediator, and that the terms are fair, reasonable, and adequate for preliminary approval. The Court hereby preliminarily approves the Settlement Agreement, appoints ILYM Group, Inc. as Settlement Administrator, approves the form and content of the Class Notice, and schedules a final approval hearing to determine whether the Settlement should receive final approval and whether the requested attorneys' fees, costs, and service awards should be

granted.

Analysis

The primary determination is whether the proposed settlement is "fair, reasonable, and adequate" under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801. The factors include "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also, *Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521.)

California law provides guidance concerning judicial approval of class action settlements. First, public policy favors settlement (*Neary v. Regents of Univ. of Cal.* (1992) 3 Cal.4th 273), but the court must not approve an agreement contrary to law or public policy (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127). Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*Cal. State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) Consequently, courts have noted that *Neary* does not apply where public rights are implicated, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorneys' Fees

Plaintiffs' counsel seek attorneys' fees of \$437,500.00 representing thirty-five percent of the total settlement amount, relying on the common fund doctrine. Even under the common fund theory, however, the fee award should be reviewed through a *Lodestar* cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the *Lodestar* cross-check as a method to determine whether the percentage allocated is reasonable. The Court stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (Id. at p. 505.) Following typical practice, however, the Court will not consider the fee award at this preliminary approval stage, but reserves review for final approval.

Similarly, litigation costs in the amount of \$40,000 and the requested representative payment of \$7,500 for each named plaintiff and class representative will be reviewed at the time of final approval. Criteria for evaluating representative payment requests are discussed in *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804-807.

Upon review, there is good cause to find that the Settlement appears to be fair, adequate, and reasonable to the Class and falls within the range of reasonableness, subject only to objections that may be raised at the Final Approval Hearing. Good cause, therefore appearing, the Court makes the

following orders and ruling.

RULING

1. The settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order lodged on October 7, 2025 attaching a copy of this ruling.
3. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are ordered to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384, subdivision (b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorneys' fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release of attorneys' fees through an unreported minute order without a hearing upon review of the compliance statement representing full compliance with the Court's Final Order Approving Settlement.
6. No appearance is required at the hearing on July 22, 2026

18. 9:00 AM CASE NUMBER: C24-01377
CASE NAME: RAMON RODRIGUEZ VS. DISTRICT COUNCIL OF CONTRA COSTA COUNTY, SOCIETY OF ST. VINCENT DE PAUL, DIOCESE OF OAKLAND, A NONPROFIT CORPORATION

***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Ramon F. Rodriguez ("Plaintiff") filed a Motion for an order granting Final Approval of the Class Action and PAGA Settlement Agreement ("Settlement" or "Settlement Agreement") between Plaintiff and Defendants District Council Of Contra Costa County, Society of St. Vincent De Paul, Diocese of Oakland, a nonprofit corporation; St. Vincent De Paul Society of Contra Costa County; and St. Vincent De Paul Society ("Defendants") (collectively, "the Parties"). This Motion is unopposed and is **granted**. No appearance is required at the hearing on July 22, 2026.

Background

Plaintiff moves for final approval of the Class Action and PAGA Settlement Agreement with Defendants. This action arises from allegations that Defendants, who operate thrift stores to fund social welfare programs, violated the California Labor Code and Business and Professions Code by failing to pay minimum and overtime wages, failing to provide meal and rest periods, failing to indemnify necessary business expenses, failing to timely pay final wages, and failing to provide

accurate wage statements. Plaintiff, a former Donations Attendant employed from November 2019 to August 2023, filed this action on May 23, 2024, and served notice upon the Labor and Workforce Development Agency ("LWDA") on May 21, 2024, subsequently filing a First Amended Complaint adding PAGA claims on July 26, 2024. Following a full-day mediation with mediator Steve Serratore on May 19, 2025, the Parties reached a global settlement. The Court previously granted preliminary approval on November 18, 2025, and directed notice to the class.

The Settlement Class is defined as all current and former hourly employees employed by Defendants in California who were classified as non-exempt during the Class Period of May 23, 2020, through July 19, 2025. The Class consists of 131 Participating Class Members who worked approximately 7,142.9 workweeks during the Class Period. Notice was effectuated by mailing Class Notice Packets on December 4, 2025, following address verification through the National Change of Address database; of 131 notices mailed, 128 were successfully delivered following skip tracing efforts for undeliverable notices. As of the January 19, 2026 response deadline, the Settlement Administrator received no requests for exclusion, no objections to the Settlement, and no disputes regarding the allocation of qualifying workweeks.

The Settlement provides for a non-reversionary Gross Settlement Amount of \$175,000.00, to be allocated as follows:

- a. Attorneys' fees of \$58,333.33 (representing 33.33% of the Gross Settlement Amount) to Class Counsel, Sentinel Firm, APC;
- b. Litigation costs of \$18,297.60 to Class Counsel (which is \$1,702.40 under the \$20,000.00 cap, with such excess to be redistributed to the class);
- c. A class representative incentive award of \$10,000.00 to Plaintiff;
- d. PAGA penalties of \$15,000.00; and
- e. Settlement Administration costs of \$6,500.00 to Apex Class Action Administration, LLC.
- f. The resulting Net Settlement Amount of approximately \$85,166.67 shall be distributed to Participating Class Members.

The Net Settlement Amount shall be distributed to Participating Class Members on a pro rata basis according to their proportionate share of workweeks worked during the Class Period, calculated by dividing the Net Settlement Amount by the total number of workweeks worked by all Participating Class Members and multiplying the result by each individual's workweeks. Based upon this calculation, the highest Individual Settlement Award is approximately \$2,983.57, and the average Individual Settlement Award is approximately \$650.13. Defendants shall fund the Settlement within sixty days of the Effective Date.

With respect to the PAGA component, Defendants shall pay penalties of \$15,000.00, with seventy-five percent (\$11,250.00) allocated to the LWDA and twenty-five percent (\$3,750.00) distributed to Aggrieved Employees. The Aggrieved Employees are defined as all current and former hourly employees employed by Defendants in California who were classified as non-exempt during the PAGA Period of May 21, 2023, through July 19, 2025, totaling 75 individuals. Individual PAGA Payments shall be calculated based upon each Aggrieved Employee's proportionate share of PAGA Period Pay Periods worked, resulting in an average payment of approximately \$50.00, a highest payment of approximately \$123.38, and a lowest payment of approximately \$0.72.

Upon the Effective Date, all Settlement Class Members who have not validly excluded themselves shall be bound by the release provisions and shall be permanently barred and enjoined from instituting, maintaining, or prosecuting any released claims against the Released Parties. The Settlement constitutes a full and final resolution of all claims arising from or relating to the allegations in the Operative Complaint and the PAGA Notice.

The Court finds that the Settlement is fair, adequate, and reasonable, representing the product of arm's-length negotiations between experienced counsel following sufficient investigation and mediation. The absence of objections and opt-outs, combined with the meaningful recovery for the class and the resolution of PAGA claims, confirms that the Settlement merits final approval. The Court retains jurisdiction to enforce the terms of the Settlement and directs the Parties to effectuate the Settlement according to its terms. The Court further sets a final compliance and accounting hearing for June 2027 to monitor the completion of the distribution process.

Analysis

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees and Costs

Plaintiff seeks one-third of the total settlement amount as fees, \$58,333.33, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

The Court finds that Class Counsel's request for attorneys' fees and costs of \$18,297.60 are reasonable in light of the 91.90 hours expended, the excellent results obtained, and the contingent nature of the representation.

The requested class representative incentive award of \$10,000.00 to Plaintiff is appropriate compensation for his substantial efforts in prosecuting this action. The Settlement Administration costs of \$6,500.00 to Apex Class Action Administration, LLC are approved as reasonable and necessary for the distribution of notice and administration of the Settlement.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is **granted**.
3. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
5. Plaintiffs’ counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing, and is ordered to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
6. No appearance is required at the hearing on July 22, 2026.

19. 9:00 AM CASE NUMBER: C25-03259

CASE NAME: BRANDON WOODARD VS. RYAN KIM

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: KIM, RYAN MAXWELL

TENTATIVE RULING:

Before the Court is a motion to compel arbitration and stay the action, filed by defendants, Kaiser Foundation Health Plan, Inc., The Permanente Medical Group, Inc., Kaiser Foundation Hospitals, Kaiser Permanente Insurance Co., Ryan Maxell Kim, Doertlis Kuschel Schultze-Allen, and Sara Eskandari Larkin (collectively “Kaiser”). Kaiser’s motion is not a petition as described in the papers

because this case was already pending.

Specifically, plaintiff filed this action for medical malpractice on November 5, 2025, after attempting to serve defendants at the same address where plaintiff had successfully served the Senior Principal Claims Administrator with his notice of intent to sue. Entry to the “legal department” was denied and the facilities representative who received plaintiff’s counsel was unwilling to accept service of the arbitration demand. Accordingly, that same day, plaintiff’s counsel inserted a recounting of these events into the complaint under the title, “WAIVER OF ARBITRATION,” and proceeded to file suit in this Court. (See Complaint, ¶¶22-26.) Counsel also emailed the demand for arbitration to Kaiser that same day.

On December 30, 2025, defendants answered the complaint and on February 25, 2026, they filed this motion to compel arbitration, which is supported by a document entitled “petition,” the notice of motion and amended notices, a memorandum of points and authorities, and seven declarations (Ana B. Kimoto, Brady Hauswirth, Eric Carlile, Mayisha Woods, Colin S. Crabb, Justin D. Muro, and Yvonne M. Pierrou).

Notably, the filed Declaration of Colin S. Crabb is redacted and an unredacted copy has been lodged. California Rules of Court, Rule 2.551 (b)(1) provides that “[a] party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” Here, no motion to seal has been filed. Accordingly, the Court has not considered the contents of any document outside the public record, but declines to allow the filing of a document under seal without the requisite motion.

Plaintiff, Brandon Woodard, has filed a limited opposition to the motion and points out that both sides are currently actively engaged in arbitration. He also points out that he unsuccessfully attempted to serve the arbitration demand on the same day as this action was filed, and that the Office of the Independent Administrator has since accepted the demand.

Kaiser replies by citing the statute at issue, Code of Civil Procedure, § 1281.2. That section states, in pertinent part:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy *and that a party to the agreement refuses to arbitrate that controversy*, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

- (a) The right to compel arbitration has been waived by the petitioner; or
- (b) Grounds exist for rescission of the agreement.

(Code Civ. Proc., § 1281.2, emphasis added.)

Here, plaintiff has sufficiently shown that he does not refuse to arbitrate, at least at this point in time.

Accordingly, **the Court stays this action and continues the hearing on this motion to April 8, 2027 at 8:30 a.m. in this Department** for a status update on arbitration. Parties shall appear (Zoom permitted) to update the Court regarding the status of arbitration.

20. 9:00 AM CASE NUMBER: C26-00089
CASE NAME: AARON GUION VS. WATERTON RESIDENTIAL, L.L.C.
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: WATERTON RESIDENTIAL, L.L.C.
TENTATIVE RULING:

Defendant Waterton Residential, LLC's motion to compel arbitration is **denied**.

Plaintiff filed a class action and PAGA complaint for various wage and hour claims against his employer Waterton Residential. Defendant Waterton Residential filed this motion to compel arbitration.

In its moving papers, Defendant provided an arbitration agreement that included Plaintiff's signature. (Tovar dec.) Plaintiff does not contest that he signed the agreement. In his opposition, Plaintiff focuses exclusively on unconscionability.

Once the existence of an arbitration agreement is established, the burden is on the party opposing arbitration to prove a defense to its enforcement. (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580.) To invalidate the arbitration agreement on the grounds of unconscionability, which is what Plaintiff claims here, Plaintiff is required to show that the agreement is both procedurally and substantively unconscionable. (See *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.) The more substantively unconscionable the arbitration agreement is, the less evidence of procedural unconscionability is required to render it unenforceable, and vice versa. (*Id.*)

Procedural Unconscionability

"Procedural unconscionability 'addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power.' [Citation.]" This element is generally established by showing the agreement is a contract of adhesion, i.e., a 'standardized contract which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.' [Citation.] Adhesion contracts are subject to scrutiny because they are 'not the result of freedom or equality of bargaining.' [Citation.] However, they remain valid and enforceable unless the resisting party can also show that one or more of the contract's terms is substantively unconscionable or otherwise invalid." (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 492-493.)

"[A]lthough adhesion alone generally indicates only a low degree of procedural unconscionability, the potential for overreaching in the employment context warrants close scrutiny of the contract's terms." (*Id.* at 494.)

Here, Plaintiff points to language in the arbitration clause that states the arbitration

agreement is a condition of employment. (Agreement p. 1.) Plaintiff provides no additional evidence addressing procedural unconscionability.

The Court finds that there is some procedural unconscionability here.

Claims Cover by the Agreement

Plaintiff argues that the scope of the arbitration agreement requires Plaintiff to arbitrate issues outside of employment and is therefore, unconscionable.

In *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312, the court held that the scope of arbitration applied to more than employment related disputes and was unconscionable. (*Id.* at 325.) There, the arbitration clause required plaintiff to arbitrate “all claims, whether or not arising out of Employee's University employment, remuneration or termination, that Employee may have against the University or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise; and all claims that the University may have against Employee.” (*Id.* at 321.) The court held that the scope required plaintiff to arbitrate claims outside of her employment and the employer provided no justification for that requirement. (*Id.* at 324-325.)

In *Ayala-Ventura v. Superior Court* (2026) 119 Cal.App.5th 241 the court looked at an arbitration agreement with a broadly worded scope and found that it was not unconscionable. (*Id.* at 256.) There, the agreement applied to “all claims, disputes, and/or controversies (collectively ‘claims’), whether or not arising out of [Ayala-Ventura]’s employment or the termination of employment, that Company may have against [Ayala-Ventura] or that [Ayala-Ventura] may have against Company or against its employees or agents in their capacity as employees or agents.” (*Id.* at 255.) The court found that the language was ambiguous and construed the scope to apply only to employment-related claims because such construction rendered the agreement enforceable. (*Id.* at 256.)

Here, the arbitration agreement applies to “any and all claims that could be brought in a court of law, including, but not limited to, all claims that arise out of your employment with the Company, except for those claims excluded in paragraph B below. This Agreement applies to all disputes involving legally protected rights (e.g., claims based on federal, state and/or local antidiscrimination laws, claims based on public policy, common law rights, tort, contract, etc.) ...” (Agreement, p. 2, section A) The agreement excludes worker’s compensation benefits, unemployment compensation and claims based on the company’s pension or welfare benefit plans. (Agreement, p. 2, section B.)

Here, the arbitration agreement is narrower than the ones in *Cook* and *Ayala-Ventura* as it does not specifically include non-employment related claims. The scope of the arbitration agreement is somewhat ambiguous, however, and it could be read as applying to employment-related claims or applying to all claims, whether or not they arise from employment.

Reading the agreement in its entirety, it shows that the parties intended to arbitrate employment-related claims. The agreement states that the arbitration “shall be conducted pursuant to the AAA’s Employment Arbitration Rules”. (Agreement p.2, section D.) Further, the agreement contemplates arbitration if the parties cannot resolve a dispute using the Company’s complaint procedure found in its Handbook. (Agreement p. 1) While the Court has not seen the Company’s handbook, this reference suggests that arbitration would relate to employment disputes. Finally, the Court notes that it should construe arbitration clauses, if reasonable, in a manner that renders it lawful. (*Ayala-Ventura, supra*, 119 Cal.App.5th at 256.)

The Court finds that while the scope of the arbitration clause is ambiguous, it should be interpreted as applying to employment-related claims and as such, it is not unconscionable in scope.

Mutuality

Plaintiff argues that the agreement lacks mutuality because Plaintiff is required to arbitrate claims with Waterton, but also with its parent companies, subsidiaries, agents, owners, officers and insurers.

“Agreements to arbitrate must contain at least ‘ “a modicum of bilaterality” ’ to avoid unconscionability. [Citation.] When only the weaker party’s claims are subject to arbitration, and there is no reasonable justification for that lack of symmetry, the agreement lacks the requisite degree of mutuality. [Citations.]” (*Abramson v. Juniper Networks, Inc.* (2004) 115 Cal.App.4th 638, 657.)

In *Cook*, the court found that a similar clause lacked mutuality. (*Cook, supra*, 102 Cal.App.5th at 328.) The arbitration agreement applied to the employer, USC, but also to “any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise.” (*Id.* at 326.) In finding a lack of mutuality, the court considered the broad nature of the arbitration clause which required Plaintiff to arbitrate claims unrelated to her employment. (*Id.* at 327.) The court also noted that it would be difficult for the plaintiff to enforce the clause against the third-party entities, whereas it would be easy for the third parties to enforce the clause against Plaintiff. (*Id.* at 327-328.)

In *Ayala-Ventura* the arbitration clause defined the company to include “all of its related entities, parents, and subsidiaries.” (*Ayala-Ventura, supra*, 119 Cal.App.5th 241 at 258.) Plaintiff argued that she would be required to arbitrate her claims against the company and its employees and agents (based upon the claims subject to arbitration), but plaintiff would not be able to use the arbitration agreement to force employees and agents to arbitrate their claims against her. (*Ibid.*) The court distinguished *Cook* and noted that in *Cook* the employee was required to arbitrate any claims against individuals even where they were not acting in an official capacity. Whereas in *Ayala-Ventura*, the plaintiff would only be required to arbitrate claims against other employees or agents that were related to her employment. (*Ibid.*) The court found that the clause had a modicum of bilaterality. (*Id.*

at 529.)

Arbitration agreements that include any claims arising from or related to the employment relationship are generally found not to be unconscionable. (See, *Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1069; 1075 fn.1.)

Here, the agreement states that it applies to the following entities: "Waterton Residential, LLC, and Pathway Management, LLC, including their parent companies, subsidiaries, affiliates, agents, owners, officers, successors, transferees, assigns, and insurers, (collectively, the 'Company')"

(Agreement, pg. 1, par. 1.) Thus, when the agreement states that "You and the Company" agree to arbitration, it applies to many more entities than just Plaintiff and Waterton.

As discussed above, the Court interprets the arbitration agreement as applying to employment-related claims. Further, the Court finds that, similar *Ayala-Ventura*, requiring Plaintiff to arbitrate employment-related claims with Waterton's entities and employees contains a modicum of bilaterality and is not unconscionable.

PAGA Waiver

Plaintiff argues that the arbitration agreement included an illegal waiver of PAGA claims.

An employee's right to bring a PAGA action is unwaivable and "a prohibition of *representative* claims frustrates the PAGA's objectives." (*Iskanian [v. CLS Transportation Los Angeles, LLC]* (2014)] 59 Cal.4th [348,] 383.)... In *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, 644–645... the United States Supreme Court found a different part of *Iskanian's* interpretation of PAGA preempted by the FAA. But the United States Supreme Court did not disturb *Iskanian's* holding that a blanket PAGA waiver is unconscionable under California law. Rather, the United States Supreme Court found that, insofar as *Iskanian* invalidated a provision for being 'a wholesale waiver of PAGA claims[,] ... that aspect of *Iskanian* is not preempted by the FAA.' (*Viking River Cruises, supra*, 596 U.S. at p. 662.)" (*Alberto v. Cambrian Homecare* (2023) 91 Cal.App.5th 482, 494-495.)

In *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, the California Supreme Court clarified that "a plaintiff who files a PAGA action with individual and non-individual claims does not lose standing to litigate the non-individual claims in court simply because the individual claims have been ordered to arbitration." (*Id.* at 1128; see also, *Hasty v. American Automobile Assn. etc.* (2023) 98 Cal.App.5th 1041, 1063 [a ban on *all* representative actions remains unconscionable].)

Here, the agreement states that "[e]xcept where prohibited by law, covered disputes must be brought on an individual basis only; and arbitration on an individual basis is the exclusive remedy. The arbitrator shall not have authority to hear claims on a multi-plaintiff, class, collective or representative action basis. *You agree not to participate as a member or representative* in any multi-plaintiff, class, collective or *representative action* against the Company; and you further agree you are not entitled to

any recovery in such an action in any forum.” (Agreement p. 2, section C (emphasis added).)

Defendant argues that the PAGA waiver is enforceable because the clause states “[e]xcept where prohibited by law”. The Court is not convinced that such a clause “saves” an otherwise illegal PAGA waiver and Defendant has cited no law to support this argument.

The Court finds that the agreement improperly prohibits an employee from participating in a representative action, such as a PAGA claim, against the company. This clause is unconscionable.

Indefinite Duration

Plaintiff argues that the agreement is unconscionable because it has an unlimited duration. Here, the clause states that “This Agreement will survive the termination of your employment with the Company.” (Agreement, pg. 4, par. 3.)

In *Cook, supra*, 102 Cal.App.5th at 325 the court affirmed a trial court’s finding that a similar clause was unconscionable. There, the clause stated that it “shall survive the termination of Employee’s employment, and may only be revoked or modified in a written document that expressly refers to the ‘Agreement to Arbitrate Claims’ and is signed by the President of the University.” (*Id.* at 325.) The court explained that the provision specifically provides that it will survive unless and until the employer specifically terminates the agreement in a writing. (*Id.* at 326.)

Defendant argues that “arbitration agreements that do not specify a term of duration are terminable at will after a reasonable time has elapsed. [Citations.]” (*Reigelsperger v. Siller* (2007) 40 Cal.4th 574, 580.) In *Reigelsperge* agreement was intended to apply, not only to the “entire course of treatment for my present condition,” but to “any future condition(s) for which I seek treatment.” (*Id.* at 580.) The court held that this language required plaintiff to arbitrate his claim for negligent treatment that occurred several years after he signed the form. (*Ibid.*) The court did not consider unconscionability.

Here, unlike in *Reigelsperge*, the agreement includes a term of duration, stating that the agreement “survives the employee’s termination of employment”. While the agreement does not state that it can only be terminated by written agreement, as was the case in *Cook*, this agreement still includes an open-ended term of duration which the Court finds is unconscionable.

Costs of Arbitration

Plaintiff argues that the arbitration agreement requires Plaintiff to pay the case management fee, which is unconscionable. In the employment context, the employer must bear the costs unique to arbitration. (*Armendariz, supra*, 24 Cal.4th at 113.)

Here, the agreement states that “The party seeking arbitration will be responsible for paying the initial filing or case management fee. The remaining fees for the arbitration will be paid by the

Company.” (Agreement, pg. 3.)

The AAA employment / workplace fee schedule states that the individual’s filing fee is capped at \$350. Whereas the company pays a higher filing fee, along with a case management fee of \$750. (Otkupman dec. ex. 1.)

The payment clause does not require Plaintiff to pay a case management fee, even if Plaintiff is the one seeking arbitration. Rather, the clause would require Plaintiff to pay a filing fee *or* a case management fee, but the AAA rules do not require Plaintiff to pay a case management fee. Whether the individual or the company seeks arbitration, the company is responsible for paying the case management fee. Thus, Plaintiff is not required to pay the case management fee and the Court finds that this clause is not unconscionable.

Severance

Defendant argues that any unconscionable clause should be severed. The Agreement provides that “If any provision of this Agreement is determined to be void or otherwise unenforceable... such determination shall not affect the validity of the remainder of this Agreement.” (Agreement p. 4.)

The Court finds that the unlimited duration and the PAGA waiver are unconscionable and unenforceable. The next question is whether the unenforceable clauses should be severed from the agreement.

“ ‘ ‘ ‘In deciding whether to sever terms rather than to preclude enforcement of the provision altogether, the overarching inquiry is whether the interests of justice would be furthered by severance; the strong preference is to sever *unless* the agreement is ‘permeated’ by unconscionability.’ ... An agreement to arbitrate is considered ‘permeated’ by unconscionability where it contains more than one unconscionable provision.” ‘ [Citation.]” (*Hasty, supra*, 98 Cal.App.5th 1041, 1064.) Multiple unconscionable clauses “indicate a systematic effort to impose arbitration on an employee not simply as an alternative to litigation, but as an inferior forum that works to the employer's advantage.” (*Armendariz, supra*, 24 Cal.4th at 124.) “Severance may be properly denied when the agreement contains more than one unconscionable provision, and ‘ “there is no single provision a court can strike or restrict in order to remove the unconscionable taint from the agreement.” [Citations.]’ [Citations.]” (*Cook, supra*, 102 Cal.App.5th at 329.)

Here, the Court finds that there are two unconscionable clauses, including the PAGA waiver which raises important public policy concerns. The Court finds that severance is not appropriate in this case.

21. 9:01 AM CASE NUMBER: C25-00985

CASE NAME: CHASE MOUTON VS. HUAN LI

***HEARING ON MOTION FOR DISCOVERY: COMPEL PLAINTIFF CATHERINE MOUTON'S FURTHER RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENT NO.1-5**

FILED BY: LI, HUAN

TENTATIVE RULING:

This hearing was advanced to July 15, 2026 and was heard with discovery motions pursued by Defendants. No appearance is required on July 22, 2026.

22. 9:01 AM CASE NUMBER: MSC21-00907

CASE NAME: HAU WING SEZTO VS. DAVID JUSTICE

***HEARING ON MOTION FOR DISCOVERY: HAVE MATTERS SPECIFIED IN REQUEST FOR ADMISSION TO BE DEEMED ADMITTED**

FILED BY: SEZTO, HAU WING "BONNIE"

TENTATIVE RULING:

Summary

Plaintiff Hau Wing "Bonnie" Sezto's Motion to Deem Matters Specified in Requests for Admissions Admitted and for Monetary Sanctions is unopposed and is **granted**.

Background

Plaintiff has filed a civil action against Defendant David Martin Justice ("Defendant") alleging sexual battery, intentional infliction of emotional distress, false imprisonment, battery, and negligence based on conduct occurring from approximately Plaintiff's age 10 through her late teens. Defendant, who is currently self-represented, is incarcerated at Ironwood State Prison following his June 12, 2023 conviction on twelve felony counts, including violations of Penal Code sections 288(c)(1) (lewd acts upon a child) and 261(a)(2) (forcible rape). He was sentenced to 44 years to life. While his appeal is pending, the conviction is final at the trial court level.

Plaintiff contends that the central liability issues have been conclusively established by Defendant's criminal conviction. With Defendant's guilt already adjudicated, the remaining questions for the civil jury are limited to the nature and extent of Plaintiff's injuries, the amount of compensatory damages, and the amount of punitive damages warranted by Defendant's conduct. Plaintiff contends that Defendant has assets exceeding \$10 million and that his conduct caused her injuries exceeding \$5 million.

The current dispute arises from Defendant's failure to respond to discovery propounded by Plaintiff. In July 2021, Defendant served discovery on Plaintiff, including a deposition notice, and Plaintiff has been diligent in timely responding to all of Defendant's discovery demands. Defendant initially sought a stay of his duty to respond to discovery based on self-incrimination concerns, and the court permitted him to object on that basis. Following his 2023 conviction, the Court finds that self-incrimination is no longer a valid concern.

On May 7, 2025, Plaintiff served written discovery on Defendant, including Requests for Admissions

(Set One, Nos. 1-35), which sought admissions regarding his conviction, the injuries he caused Plaintiff, and his assets. Responses were due no later than June 6, 2025. To date, Defendant has provided no responses to any of Plaintiff's written discovery demands. Plaintiff has attempted to meet and confer through multiple channels, including contacting Defendant's prior counsel, sending letters by first class mail to the prison facility, and speaking with prison personnel, but all efforts have been unsuccessful.

Plaintiff now moves for an order deeming the matters specified in the Requests for Admissions admitted and for monetary sanctions under Code of Civil Procedure section 2033.280(c). Plaintiff has incurred \$3,500 in attorneys' fees and costs to bring this motion and estimates an additional \$1,750 will be required to prepare a reply and attend the hearing. Plaintiff requests sanctions of \$3,500. The motion was served on Defendant's former counsel on April 22, 2026, and on Defendant at Ironwood State Prison by email and regular mail on April 23, 2026. No timely response has been filed.

ANALYSIS

Requests for Admissions

Pursuant to Code of Civil Procedure section 2033.280(b), if a party fails to respond to requests for admission, the propounding party may move to have the genuineness of documents and the truth of matters specified deemed admitted. The failure to timely respond also waives any objections, including privilege objections. Where responses are entirely absent, the court has no discretion to deny the motion. *Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393, 395. Additionally, Code of Civil Procedure section 2033.280(c) requires the court to impose monetary sanctions on the party or attorney whose failure to serve a timely response necessitated the motion.

Self-Represented Litigant

A self-represented party "is to be treated like any other party and is entitled to the same, but no greater, consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation"); *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"); *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "trial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements." *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594. When one party has counsel and the other does not, the trial court "should monitor to ensure the in *propria persona*

litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system." Ibid.

Here, there is no evidence that Defendant was misled by the court or Plaintiff. The motion and supporting papers were properly served, and Defendant has had ample opportunity to respond.

III. Failure to Oppose

California Rules of Court, rule 8.54(c) states that "[a] failure to oppose a motion may be deemed a consent to the granting of the motion." *Cravens v. State Bd. of Equalization* (1997) 52 Cal.App.4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 (where a party fails to file timely opposition to a motion, it is "well within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified"); *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 (failure to address or oppose issue in motion constitutes waiver of that issue); *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 (failure to support a point with reasoned argument and citations to relevant authority constitutes waiver).

Defendant's failure to timely oppose this motion is deemed consent to its granting.

Ruling

Having considered Plaintiff Hau Wing "Bonnie" Sezto's Motion to Deem Matters Specified in Requests for Admissions Admitted and for Monetary Sanctions, the supporting declarations and exhibits, and the applicable law, the Court hereby finds, concludes, and orders as follows:

1. Plaintiff's Motion is **granted**.
2. Plaintiff's Requests for Admissions of Fact and Genuineness of Documents to Defendant David Martin Justice, Set One, Request Nos. 1-35, are **deemed admitted**.
3. The documents attached to Exhibit 1 of the Requests for Admissions are **deemed genuine**.
4. Monetary sanctions in the amount of \$3,500 are awarded against Defendant David Martin Justice. Defendant shall pay sanctions no later than thirty (30) days from the date of entry of this order.
5. Plaintiff shall prepare and e-file a proposed order conforming to this ruling no later than five (5) days from the date of this order.

23. 9:01 AM CASE NUMBER: MSC21-01215

CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH

***HEARING ON MOTION FOR DISCOVERY RELIEF FROM DEFENDANT'S MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED**

FILED BY: WESTBROOK, LYNETTA

TENTATIVE RULING:

Summary

Before the Court is Plaintiff Lynetta Westbrook's ("Plaintiff") Motion for Relief from Orders Deeming Requests for Admission Admitted and Awarding Sanctions. The motion is **denied**.

Background

On September 8, 2025, Defendant San Pablo Healthcare & Wellness Center ("Defendant") filed three motions to compel discovery: (1) Motion to Deem Facts Admitted as to Plaintiff Individually; (2) Motion to Deem Facts Admitted as to Plaintiff as Successor in Interest; and (3) Motion to Compel Production of Documents and Things (Set Two).

The motions stemmed from Plaintiff's failure to provide verified, complete responses to Requests for Admission and Requests for Production served on April 28, 2025, despite extensions granted to June 27, 2025. On February 25, 2026, the Court granted all three motions, deeming the Requests for Admission admitted and awarding sanctions totaling \$5,068.85. Plaintiff did not file formal oppositions, nor did she notify the Court of her intent to contest the tentative ruling prior to the hearing.

Plaintiff now moves for relief under Code of Civil Procedure section 473(b), contending that her failure to oppose the motions resulted from "excusable neglect" attributable to her counsel's staffing crisis. Counsel attests that an associate attorney was hospitalized in mid-December 2025 and two paralegals were on leave to study for the bar examination, disrupting the firm's calendaring system and creating a discovery backlog.

Plaintiff emphasizes that she served verified responses to the Requests for Admission on February 9, 2026, and responses to the Requests for Production on February 13, 2026 (with verifications following on February 19, 2026), and filed a declaration on February 9, 2026, apprising the Court that responses had been provided. Plaintiff argues that the Court overlooked this submission due to titling deficiencies and that Defendant will suffer no prejudice because substantive responses were served prior to the hearing. Alternatively, Plaintiff seeks discretionary relief under Code of Civil Procedure section 2033.300, arguing the deemed admissions resulted from mistake, inadvertence, or excusable neglect, and that Defendant will not be substantially prejudiced by permitting withdrawal of the deemed admissions.

Defendant opposes the motion, arguing that Plaintiff invoked the wrong statutory mechanism and procedurally defaulted by failing to formally oppose the discovery motions or contest the tentative ruling prior to the hearing.

Analysis

A. Applicable Legal Standard

Where the Discovery Act provides a specific remedy for the relief sought, Code of Civil Procedure section 473(b) is inapplicable. *Zellerino v. Brown* (1991) 235 Cal.App.3d 1097, 1107; *Scottsdale Ins. Co. v. Superior Court* (1997) 59 Cal.App.4th 263, 274. Relief from deemed admissions is governed by Code of Civil Procedure section 2033.300, which permits withdrawal or amendment of an admission only upon a showing that (a) the admission resulted from mistake, inadvertence, or excusable neglect, and (b) the party who obtained the admission will not be substantially prejudiced. *New Albertsons, Inc. v.*

Superior Court (2008) 168 Cal.App.4th 1403, 1418. Relief under section 2033.300 is discretionary, not mandatory.

B. Plaintiff Has Failed to Establish Excusable Neglect

As a general rule, attorney neglect is imputed to the client, who bears the burden of demonstrating that such neglect was excusable. *Henderson v. Pacific Gas & Elec. Co.* (2010) 187 Cal.App.4th 215, 230-232. The test for excusable neglect is whether "a reasonably prudent person under the same or similar circumstances might have made the same error." *Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 276. Where an attorney is aware of a deadline yet fails to file a response or opposition, such conduct is not excusable. *Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1128-1129. Numerous calendaring mistakes due to disorganization of counsel, chronic short staffing, and habitual failures do not constitute excusable neglect. *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1412; *Ambrose v. Michelin North America, Inc.* (2005) 134 Cal.App.4th 1348, 1355-1356. An attorney cannot blame secretaries or clerks for missed deadlines or improper filings. An attorney must supervise staff to ensure compliance with court obligations. *Vaughn v. State Bar* (1972) 6 Cal.3d 847, 857-858 (The Court found that the "record amply establishes that petitioner (attorney) was grossly negligent in failing to supervise adequately his staff and its work product, particularly in respect to its handling of court documents.")

The record reflects a pattern of calendaring deficiencies and discovery failures, including the provision of unverified and incomplete responses, failure to cure defects following meet and confer efforts, and failure to oppose multiple motions to compel. A reasonably prudent attorney would not miss numerous deadlines over the span of a year, including those related to several sets of discovery, multiple motions to compel, and post-order sanctions compliance. The neglect at issue was systemic and chronic, not a single isolated error. The Court finds that Plaintiff provided unverified, incomplete responses on June 27, 2025; failed to cure defects following Defendant's meet and confer letter dated July 18, 2025; and failed to remedy deficiencies until after Defendant filed its motions on September 8, 2025.

Plaintiff cannot attribute these numerous errors to counsel's inexperience. Plaintiff's lead counsel is very experienced, having been admitted to practice in California for over twenty years. She cannot attribute a repeated pattern of noncompliance with the Discovery Act to associate attorneys or paralegals. An attorney's failure to supervise a paralegal does not constitute "excusable" neglect. Under Cal. Code of Civ. Proc. § 473, an attorney is responsible for their staff's work product. *Hu v. Fang* (2002) 104 Cal.App.4th 61, 64-65. The Court also notes that counsel's principal office is in Dallas, Texas, suggesting that counsel administers this case from a distance of 1,700 miles and across two time zones. These circumstances do not constitute excusable neglect; they demonstrate ineffective case management.

C. Defendant Would Be Substantially Prejudiced by Granting Relief

The record also shows that Plaintiff has demonstrated a refusal to comply with discovery obligations and this Court's orders, necessitating additional enforcement proceedings. Permitting withdrawal of the deemed admissions would prejudice Defendant by requiring further protracted discovery disputes and law and motion practice that could have been avoided had Plaintiff exercised due diligence.

Ruling

Having considered Plaintiff Lynetta Westbrook's Motion for Relief from Deemed Requests for Admission and Sanctions, the Opposition filed by Defendant San Pablo Healthcare & Wellness Center, LLC, the supporting declarations and exhibits, the arguments of counsel, and the applicable law, the Court hereby finds good cause to make the following orders:

1. Plaintiff Lynetta Westbrook's Motion for Relief from Deemed Requests for Admission and Sanctions is **denied** .
2. The February 25, 2026 orders deeming Defendant's Requests for Admission admitted and awarding sanctions in the total amount of \$5,068.85 shall remain in full force and effect. Plaintiff is ordered to pay sanctions no later than ten (10) days from the date of entry of this order. The Court reserves jurisdiction to schedule a hearing on Defendant's Motion for Contempt for Failure to Pay Discovery Sanctions filed on March 5, 2026.
3. Plaintiff shall pay Defendant's reasonable attorneys' fees and costs incurred in opposing this motion, in an amount to be determined by the Court upon proper application by Defendant.
4. Defendant's counsel shall prepare and e-file a proposed order conforming to this ruling no later than five (5) days from the date of this order, attaching a copy of this ruling.

Law & Motion

Add On

24. 9:00 AM CASE NUMBER: C23-03161
CASE NAME: ALISCHA WILSON VS. INTEX RECREATION CORP.,
PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT
FILED BY: WILSON, ALISCHA

TENTATIVE RULING:

Summary

Plaintiff, Alischa Wilson, ("Plaintiff") on behalf of herself and all others similarly situated and aggrieved seek Preliminary Approval of a Class Action Settlement with Defendants Intex Recreation Corp., Intex Marketing Ltd., and Intex Industries (Fujian) Company, Ltd. ("Defendants"). The case involves claims made with regard to the Intex-brand Intex Kool Splash Water Slide.

The parties are to appear at the hearing on July 22, 2026 prepared to answer the Court's questions about the terms of the settlement which include the following. Other questions may arise in the course of the colloquy at the hearing.

1. If Intex knows who purchased the product, why does the claim form require proof of purchase?
2. Why is a credit being issued in some cases? Why not simply provide a cash payment?
3. Why is the release given by the class members as broad as it is? Does it release tort claims against defendants? Why?
4. What is the meaning of "Product Issue?" In Exhibit 4 it is defined as "a rip, tear, or hole along the seams of the Product that you claim existed in the Product *when it was purchased*." (See footnote 1.) But for "Benefit Option A," a claim can be made if a "Product Issue ...*occurred within 9 months* of purchase." Those seem to be saying different things. The definition in the Settlement Agreement itself seems to comport more with the latter definition but it imports the notion of "manifestation" which appears to confuse things further.
5. How many class members are expected to be able to make a claim for the refund of their cash? How many for a credit?
6. A purchaser from the website need only provide an affidavit identifying a Product Issue to be eligible for a \$100 payment; but a purchaser from another location that submits such an affidavit gets only a \$40 credit. Why?
7. If IRC is to be the fund administrator, what is the mechanism for challenging rejection of a claim under 5.C.iv?
8. Paragraph 6 is ambiguous. What does the word "recover" (which may be a typographical error) mean? If a class member bought more than one product, is she limited to only one payment/credit?
9. Have any modifications been made under paragraph 8?